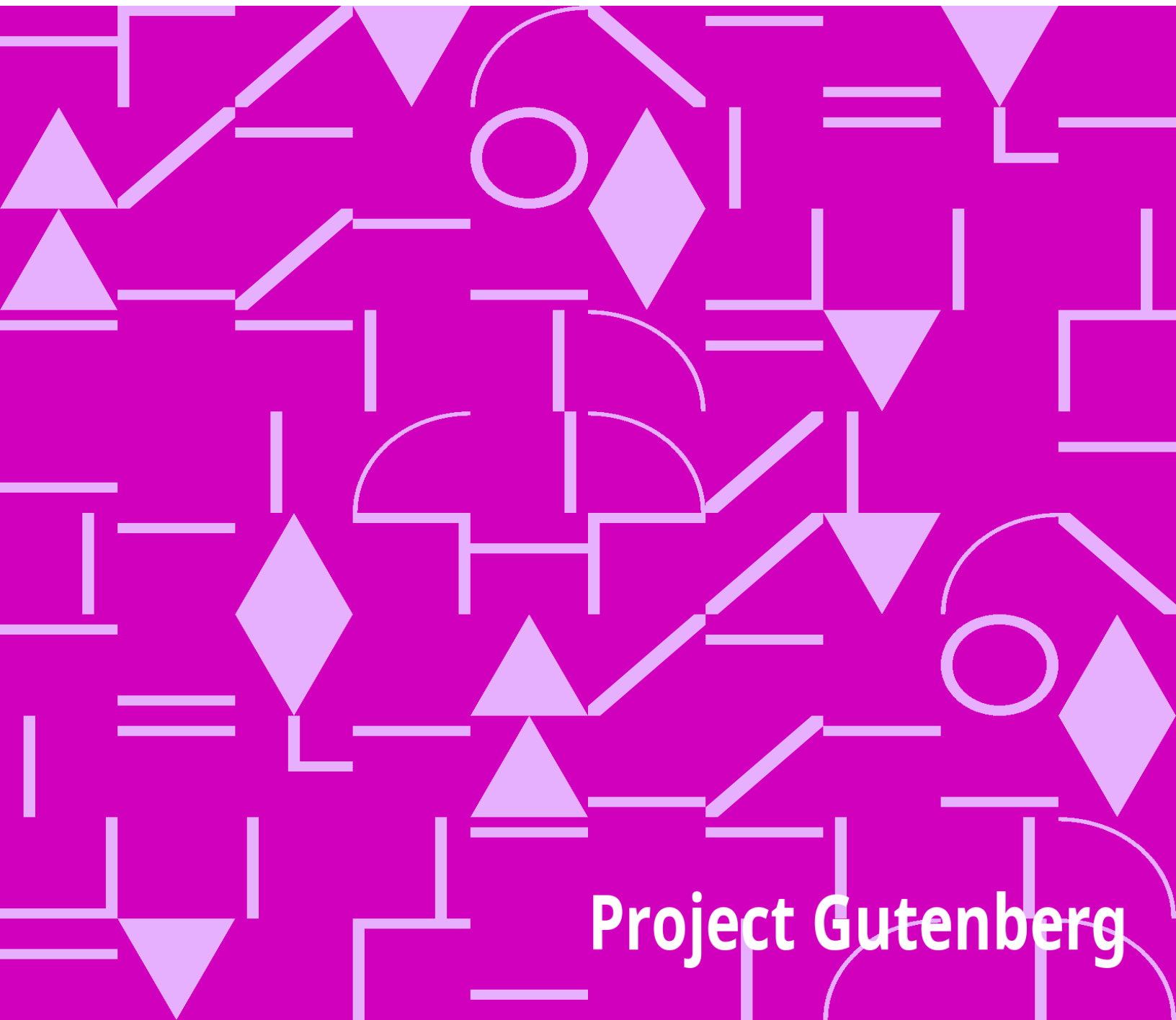


Consumers and Wage-Earners: The Ethics of Buying Cheap

J. Elliot Ross



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CONSUMERS AND WAGE-EARNERS

**CONSUMERS
AND WAGE-EARNERS**

**THE ETHICS OF BUYING
CHEAP**

**BY
J. ELLIOT ROSS, Ph.D.**

NEW YORK
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1912

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NOTE

J. ELLIOT ROSS is a member of an old and prominent Southern family. He has long been an ardent student of economics, of sociology, and of the enslaved condition of the Wage-Earner,—and *who, save the idle rich and the social drone, is not a wage-earner?* Dr. Ross is a graduate of George Washington University. The Catholic University of America conferred upon him the degree of Doctor of Philosophy for this, his excellent work in behalf of the Consumer, the Wage-Earner, and the Oppressed.

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CHAPTER ONE

THE POINT AT ISSUE

Have you ever stood in a country store and from the superior heights of mature wisdom watched a chubby-faced, bright-eyed boy invest a penny in a prize-bag? To you it is simply a paper enclosing a few nuts, a piece of candy, and a variable quantity in the shape of a tin flag, an imitation ring, etc. But to the child there is an excitement in getting one knows not what. All the gambling instincts of the race that squanders thousands upon the turf, all the love of adventure that peopled our continent, are summed up in that one act. The child has, perhaps, contentedly endured the routine of the farm for weeks in the anticipation of this one moment of blissful joy when his anxious fingers nervously reveal the delight or the disappointment.

Years have brought wisdom (or is it disillusionment?) and imitation rings no longer have the same importance in our eyes. No matter how wistfully we may look back, those days will never return. Yet prize-bags may once again loom large in our intellectual horizon, though with a difference. This time we look beyond the rosy-cheeked, healthy country lad, bred amid the beauties of God's fields and nourished with unadulterated home products, to the pale, nervous, over-worked girls who spend their days filling these bags. In an ill-lighted, ill-ventilated room, in a great dusty, dirty city they work feverishly for ten hours at the rate of four cents a hundred bags. "They stand at a table with boxes before them, from which they take peanuts, candy and prizes with quick automatic motion. They turn down the corners of each bag, and string the bags when full in long bulky curls of seventy-two."^[1]

Speeding to the utmost they cannot make enough to live on. A room in a cheap boarding-house, morally and physically dirty, insufficient food, and no chance for legitimate pleasures—this is the prize-bag life holds for them. What wonder if the temptation to supplement these wages in the way always possible for women prove too strong? Who is to blame?

Is the little chap hundreds of miles away in the country, happily unconscious of their existence, in any way responsible? This is the question with which we are going to busy ourselves.

Our little boy and over-worked girl are not, probably, typical Consumers and Producers. Still they represent large numbers of the economic world, and the solidarity of industry is such that one could not exist without the other. In a way, the country lad is a shadow of President Taft pressing a button to start the machinery of a world's fair. The child, with wonderful effect on others, furnishes a portion of the nation's industrial mechanism. In the satisfaction of his own desires, he is all unconscious of this, and unconscious, too of the responsibilities of power that modern social workers would thrust upon him.

It was once, indeed, the object of reformers to excite a sense of wrong in the oppressed. The fashion found expression in Thomas Paine's "Rights of Man." Now their purpose is also to arouse a sense of obligation in the powerful, and the change of front is indicated by Mazzini's "Duties of Man." One duty after another has been forced upon the race's conscience, and to-day

the attempt is made to compel the final, and some say the most powerful, element of the industrial world,—the Consumer,—to shoulder his share of responsibility.

Briefly, the line of argument is this: Laborers have a right to "a fair wage for a fair day's work." If employers fail in their duty of meeting this right, then the obligation neglected by the employers must be assumed by those who also benefit by the laborers' work,—by the *Consuming Class*. At first, the obligation is made abstract and hypothetical in this way because of difficulties in establishing the concrete content of the workman's right to a fair wage, and just what line of conduct is incumbent upon the individual Consumer confronted by this situation. Persons who readily agree that the laborer has a right to a fair wage, and that if this right is violated the Consumer ought to do something, will wrangle unendingly as to just what is a fair wage and just what a Consumer ought to do.

After fixing this general obligation upon the Consuming Class, however, the other question as to whether the employers are actually neglecting their duties towards their employees, and what the individual Consumer can and should do, will be considered.

The fixing of an abstract, hypothetical obligation for a whole class, rather than a concrete duty for a particular individual, is not useless. If it is proved, that, provided employers neglect their duties and the Consuming Class can do anything to fulfill them, there is an obligation upon the Consuming Class to carry out these duties—if this is established, it is only necessary when a particular case presents itself to ask: Have the men through whose labor this Consumer is benefiting been unjustly treated by their employers, and can this Consumer, without a disproportionately grave inconvenience, do anything to help them?

Unless both questions are answered in the affirmative, this particular individual Consumer can have no duty of fulfilling the abstract obligation. This is much easier than working out the principle anew for each case. It is the difference between blowing bottles and molding them.

FOOTNOTES:

[1] "Women and the Trades," *The Pittsburgh Survey*, by Elizabeth Beardsley Butler: N. Y., 1909: p. 47.

CHAPTER TWO

OBLIGATIONS OF THE CONSUMING CLASS

Practically all are agreed on the fundamental point that laborers have a right to a fair wage for a fair day's work. Leo XIII has said, that though contracts between laborers and employers are free, "nevertheless, there is a dictate of natural justice underlying them more imperious than any bargain between man and man, that remuneration ought to be sufficient to support a frugal and well-behaved wage-earner."^[2] Later in the same encyclical, he indicates that this wage should be large enough to enable a workman to "maintain himself, his wife and his children in reasonable comfort" (p. 237), and allow a margin for saving against a rainy day.

The present Pope, Pius X, has quoted these words of his predecessor and agreed that workmen have a strict right in justice to a fair wage, time to fulfill their religious duties, and freedom from work unsuited to their age, strength, or sex.^[3] The Rev. J. Kelleher, one of the most recent and respected writers on the question, goes even further. "*The right to work*," he says, "or some other right that will secure an opportunity of providing for reasonable living to the less fortunate members of the social body who do not happen to be possessed of property, is an essential condition of any equitable economic system."^[4]

Cardinal Capecehatro has said that each one has "a right to raise himself towards the infinite, a right to the intellectual nourishment of religion, and, therefore, a right to the time necessary for the worship of God, a right to repose, a right to honest enjoyment, a right to love in marriage, and the life of the home. In woman Christianity recognizes with her function of child-bearing in Christian marriage, a right to the time for the nurture of her children. In children it recognizes a right to the supreme benefit of health, given them by God, but endangered by overmuch work. In young girls it recognizes a right to such moderation in their duties as may assure them health and strength. In all, finally, it acknowledges the immortal soul, with its rights to education, to salvation, to the time that these things need."^[5]

Now when Pope Leo and the other authorities quoted used the words "right," "just," "duty," what did they mean? These words are often employed vaguely and carelessly, but we may be sure that here they were taken in a strict and well-defined sense, such as usually found among Catholic ethicists.

A right, as it is thus ordinarily defined, is "a legitimate power of doing or acquiring something for one's own good."^[6]

The word power is not taken here in the sense of physical ability. It means that moral potency or capacity without which nothing can be acquired or recovered: for a person may have a right to do what he has not the physical power to perform. "Legitimate" means granted by or conformable to law: hence we have not a right to do everything for which we have the physical power.

Once we get this idea of "right" firmly fixed in our minds, the concepts of "justice," "injustice," and "duty" easily follow. For "justice," in a definition of Ulpian that has been accepted all down

the ages since, is simply the constant and perpetual will of giving to each one his right.^[7] And injustice, naturally, is merely a voluntary violation of another's right.

A "duty" is simply the obverse of a right, it is the obligation corresponding to a right. Or as Bouquillon put it, it is "something reasonably due from one person to another because of a necessary connection between the end to be attained and the means used."^[8] As the end varies between justice and charity, so does the duty. In the one case, our object is to fulfill the precept, "love thy neighbor as thyself"; in the other, to give to each man what he has a right to have.

The fundamental concept of a "right" may be looked at from four points of view: (a) the *subject*, or who has the right; (b) the matter, or *content* of the right; (c) the *title* or reason for the right; (d) and finally, the *term*, or who has to respect the right.

Asking these questions about the right at present under consideration, we find that the subject of the right is each individual who contributes to the production or distribution of the articles purchased by the Consumer. The content of this right we have already given in the words of Leo XIII and others. Briefly, it may be summarized as the right to a decent living.

On what grounds have employees these rights? By the very fact that they are men; that is, intelligent beings destined for a supernatural end. Therefore these rights are *connatural*, as belonging to them by their nature; *inalienable*, because they cannot be renounced; *perfect*, because so strict that the duties corresponding to them are matters of commutative justice.

And who has the duties corresponding to the workman's right to a decent living? Primarily, the direct employer. He has a strict duty of justice in the matter. If he fulfill it, then no one else is bound. But in the case before us, we assume that the direct employer has failed to do his strict duty of commutative justice to his employees. It makes no difference whether the direct employer be formally guilty or not. He may be unable to perform his duty, or he may wilfully neglect it. That does not matter. *De facto*, he does neglect it. What then is the duty of the Consuming Class?

We think that the Consuming Class is bound to assume the obligations that the direct employers have neglected. And we are going to support this contention by four arguments. These arguments are:

I. *The devolution of duty argument*: the direct employer has failed to fulfill his duty, and this duty thereupon devolves upon the indirect employer, the Consuming Class.

II. *The value argument*: ideally, the buyer of an article is bound to pay its value, and, as a general rule, if proper economy has been exercised in its production, this must be sufficient to pay a living wage to the men engaged in producing and distributing that article.

III. *The co-operation argument*: the direct employer is guilty of an injustice in which the Consuming Class is bound not to co-operate.

IV. *The social argument*: it is for the common good that the average employee should be paid a living wage. And since the Consuming Class is merely the body politic, from one point of view, it is bound to sacrifice the advantage of cheap buying for the sake of the rounded advantage of the whole.

I. We have explained briefly to what every employee has a right—that is to say, what every employer must give his workmen, or commit injustice. We have assumed, further, that the employee often does not get what he has a right to have.

Now, this is not always the employer's fault. Often an employer would be glad to raise wages, to improve sanitary conditions, to shorten hours, but the stress of competition prevents him.

But the employer being unable or unwilling to pay a proper wage, etc., what becomes of the employee's right? Does it cease? Has he no claim upon anyone else?

Those who would fix an obligation on the Consuming Class say that the employee's right does not cease. He has a claim, they contend, upon all who in any way benefit by his labor, the strength of the claim depending upon the closeness of the relationship, the importance of the benefit derived, and the injustice suffered.

First of all, they point out, there is the rent-taker. But for the labor of these men (assumed to be underpaid, etc.), there would be no return out of which to pay rent. For the mere fact of ownership, which in itself may not stand for any addition to the ground's productive capacity, these men are allowed to take a part at least of what would be necessary to raise the condition of the men producing the wealth to a just standard. Therefore, because the rent-taker seems to receive the most gratuitous benefit from the employee, the duty of the employer devolves first upon him. If the employer fail, wilfully or not, to fulfill his duties to his men, then they become binding upon the rent-taker.

Should he, too, fail, the laborer still has a claim. There is another very important sharer in distribution—the interest-taker. It is true that the product is the joint result of labor and capital. But when there is the case of anonymous, impersonal capital receiving interest, and living, breathing, human machines being under-fed and unprotected, then humanity's claims supersede those of capital.^[9] The inalienable rights of the laborer, which Cardinal Capeceletro has so excellently summarized, replace the alienable rights of the individual capitalists based upon the mere possession of property. The interest-taker is bound to give even the whole of his share to maintain a just standard of wages, etc. And this principle is admitted in civil law by making wages a first lien upon the product and exempting wages from legal action.^[10]

But if the interest-taker, also, be unwilling to fulfill his duties, there is still an economic element upon which the laborer has a claim—the Consuming Class. Production on a huge scale, the interposition of wholesalers and middlemen of all sorts, shopping by mail or telephone, should not disguise the fact that the Consuming Class are really employers. It is only in an indirect way, it is true, but still a real way for all that. If the direct employer, the rent-and interest-taker refuse or are unable to perform their duties, then (leaving aside the legislature for the present) these devolve upon the Consuming Class *in so far as they benefit by the laborer's work*.

This argument for the obligation of the Consuming Class is based upon the devolution of duties. Here it may appear new and strange, because applied to a new field, but it is admitted elsewhere as beyond contradiction. If, for instance, parents will not or cannot support their children, then the grandparents have just as real a duty towards them as if they were their own immediate children. And if they, too, neglect this duty, then it devolves upon collateral relatives until finally it falls on mere neighbors.

Likewise, the Consuming Class, it is claimed, if those whose duty is prior to theirs refuse to perform it, must fulfill the duty that has devolved upon them. The rent-and interest-taker may be unjust to the employee and to them, but that is not a valid excuse.

The same principle, though arrived at by a different process of reasoning, underlies the dictum, coming to be more and more recognized by legislators and economists, that the costs of

production should be borne by the Consumers. That is to say, that the risks of professional hazard and accidents due to the carelessness of fellow-servants have been transferred from the employee to the employer. Naturally then, the employer compensates himself out of the price.

II. This question of the duty of the Consuming Class towards the men who make or sell the goods they buy, may be viewed from another angle than that of the devolution of duties or the obligation of indirect employers. Leaving out of consideration the idea of indirect employer, it is further contended that the Consuming Class, simply as purchasers, may be guilty of injustice in another sense.

For what are the duties of the buyer? To pay the true "value" of an article.^[11] And what determines the true value of an article? Not necessarily the price.

This may be fixed by law, as is the case with bread in many large cities. A loaf of a certain weight must be sold for five cents. Or we may have the natural or market price, which is determined by common consent. This is nothing more than the price resulting from the interaction of supply and demand.

But although ordinarily, justice is fulfilled if a person pay either the legal or market price, neither is really based on justice. The price fixed by law will come closer to being a just price. In a self-governing community, it probably will not do a great injustice to either party for any length of time. In this country its field is so limited, that it may be disregarded in the present discussion.

The market price, however, makes no pretense of being determined by justice. It is the shrewdness of one man pitted against the shrewdness of another, or even the greed of one against the other's need. One wants to sell for as high a price while the other wants to buy for as low a price as he can. When there are numerous buyers and numerous sellers, all knowing their business pretty well, the result will be a close approximation to what would be a just price, if the cost to the entrepreneur producing the commodities or the person managing the distributing agency were all that should be taken into consideration. In a society where the actual producer sells directly to the Consumer, where there is no production on an enormous scale employing hundreds and thousands of hands who have no voice in fixing the price of the product, then the price reached by the higgling of the market is likely to be just.

Under the medieval system of craftsmen and one or two journeymen or apprentices who formed part of the household it was possible (by lack of competition) to maintain the rate of reward by limiting the supply. "No serious attempt was made to push trade or develop business, but only to carry on each trade according to the habitual rate of reward. According to this policy, the conditions of the producer were allowed to be the first consideration, and the consumer had to pay a price at which these conditions could be maintained."^[12]

But conditions of business have changed immensely since the Middle Ages. The Industrial Revolution has brought big scale production, driving out of existence the small producer ministering directly and immediately to the wants of the community. Department stores have supplied the same principle in the distributing end of industry, and very largely replaced the small retailer. The employees of the big producer and distributor, the ones most concerned, have no voice in fixing the price of the article made or distributed by their labor. As a consequence competition will often depress the price below the point where it will yield a living wage to them. Not their rights determine this point, but what crude irresistible hunger will force them to

accept. Many times it is only a difference between starving rapidly or slowly. But competition is inexorable.

It is true, that sometimes the actual producers or distributors may not be getting living wages because the entrepreneurs or the rent-or the interest-takers are absorbing too much. But ordinarily it is probable that stress of competition between capitalists and between managers will keep their shares within fairly moderate bounds. Capital competes with capital for a share in production just as one firm competes with another to secure a market for its product. Hence it may be reasonably presumed in any given case, when nothing is known to the contrary, that where the laborers are insufficiently remunerated, it is because the price obtained for their product will not cover just wages. Nor are appearances always a safe guide. A man who owns and manages a factory (thus drawing by himself alone wages of management, rent, and interest) may seem able easily to afford higher wages. Yet to divide his whole income among all his employees might give only an inappreciable increase to each.

Therefore, it would seem that the principle of the market price being just, cannot be applied strictly to-day. On the contrary, many persons are claiming that the market price fixed by competition is usually unjust. A better principle, a more fundamental principle, one that really strikes its roots down into justice itself, would be to say that a just price is one that will yield a just return to all concerned—the actual laborers who produce the commodities, the clerks in the stores that distribute them, wages of management to the entrepreneurs concerned, and interest on the capital invested.

Certainly if this be not done, the equality between the "value" of the article and the price is not preserved. And as Ballerini says, "when the equality is not preserved, so that the seller sells for more than the highest price or the buyer buys for less than the lowest ... injustice is committed."
[\[13\]](#)

But even though the price asked were sufficient to pay the employees just wages and the entrepreneur simply refused to do it, would the Consuming Class be justified in buying the article? It is contended that they would not. For one of the duties of the seller is to give a just title. And it would seem clear that one who hires a person to make a certain article, playing upon his necessity to avoid paying what his labor is worth, has not acquired a just title to the object produced. There is something in that article for which he has not paid. Human flesh and blood that has not been compensated for have gone into its making. The seller not having a good title himself, cannot transfer such to another. Persons who buy from him do not, therefore, secure a just title, and hence, it is argued, commit a grave injustice by buying such an article.
[\[14\]](#)

III. The third argument adduced in favor of an obligation on the part of the Consuming Class is, that the purchase of articles made under unjust conditions is co-operation in the injustice. It makes no difference whether or not the employers are formally guilty of injustice. They may be forced by the competitive system, as many contend, to underpay their workmen. Nevertheless, material injustice at least is committed, and the Consuming Class have no right to co-operate formally in what may be merely material injustice for another. Yet the Consuming Class by buying goods made under unjust conditions does co-operate, it is alleged, in three ways: (A) as the recipient of the result of the injustice; (B) by furnishing the means for the act; (C) and by counselling the action. "For a co-operator is one who at the same time with another is the cause of the injury, whether secondary or equally principal, whether positive or negative. For there is

not the same manner of co-operation in all cases, but this is common to all, that one person should concur with another to commit an injury."^[15]

(A) One of the ways of positively co-operating with an injustice, is by receiving the results of the injustice. Thus a thief will not steal a bulky piece of silver unless he has a fence to receive it, and the fence becomes guilty of the theft by receiving the article. So a business man will not manufacture an article and thus commit an injustice against the laborers whom he underpays, unless he is reasonably sure some one will receive this article after it is made. The persons who receive it, then, or the purchasers, it is argued, are in the position of the thief's fence: They are receiving an article that was obtained by injustice; and it matters not whether the article was stolen outright or the injustice committed in a more gentlemanly way. Nor does the fact of the manufacturer committing the injustice to increase his profits, rather than (as has been shown elsewhere) to meet a demand for cheapness on the part of the Consuming Class, alter the situation. For a thief steals for his own enrichment, not for the advantage of the recipient of the stolen goods.^[16]

(B) One can co-operate in an injustice not only by receiving the results, but by furnishing the means for committing the injustice, and it is contended that the Consuming Class co-operate also in this way. Nor is this simply a different name for the co-operation just considered. For in the previous case, the Consuming Class co-operated with an act already performed in anticipation of this co-operation. Whereas in the phase now under discussion they co-operate with an act to be done in the future. A concrete example will make this clear. Mr. ---- invests \$50,000 in the shoe business. After paying for his plant, raw material, and the wages of his men until he has produced marketable articles, he has practically nothing left. His continuance in business depends upon his selling these articles to gain money for current expenses. The purchasers of these goods co-operate (by receiving the articles) in the injustice under which they are assumed to have been manufactured, *and also*, by furnishing the necessary means, in the injustice he will commit by manufacturing more under the same conditions.

(C) Nor is the Consuming Class's co-operation yet exhausted. For they may be looked upon as truly counselling, voting for this injustice on the part of the manufacturer. The Consumers do not go personally to the manufacturer and urge him to produce a certain article at a certain price, nor do they vote as specifically as an alderman for a contract with a factory, but their action amounts to practically the same thing. They go from one store to another seeking the cheapest price, and the manufacturer knows this. To meet this demand (a very real, though to some extent impersonal) demand for cheapness, the manufacturer commits the injustice of underpaying his employees. It makes no difference whether you call this "demand," or "counsel," or "voting," it is the real cause of the injustice, and hence the Consuming Class are guilty of co-operation.^[17]

It makes no difference if the Consumer knows that the injustice will continue whether he purchase or not.^[18] In purchasing he is guilty of a moral wrong. For as a man who buys a ticket for an obscene show, co-operates in this obscenity even though his money be not necessary for its production, so do they participate in the manufacturer's injustice.^[19] Or, to give Ballerini's illustration, if ten men suffice to launch a ship and an eleventh helps, certainly he is truly said to be helpful.^[20] In the same way, Consumers who buy an article that was made under unjust conditions co-operate in this injustice even though it would have taken place without the money received from their purchase.

For these reasons, it is contended, the Consuming Class, in buying goods made under unjust terms, co-operate in this injustice by receiving the goods, by furnishing the means for committing the injustice, and by urging such production by practical financial support.

IV. We now come to the *social argument*, that is especially popular to-day, though it is by no means new. It was familiar to the Scholastics, and it was pithily formulated by Suarez as, "Public is to be preferred to private good."^[21] Aquinas expresses it more at length: "For any individual in respect to what he is and has is related to the multitude, just as a part is related to the whole: whence nature sometimes injures a part to save the whole."^[22] Elsewhere, Suarez confers upon the civil law the power of binding in conscience because "this power is necessary for the good government of the republic."^[23]

Various extremely important and far-reaching rights and obligations are fixed by this argument. It is lawful, for instance, for the state to kill criminals "if they are dangerous and injurious to the community."^[24] Ballerini says it is lawful to kill a criminal in so far as it is ordained for the safety of the whole society.^[25] But only the properly appointed persons have this right, because greater evils would befall the *state* if each one were the judge in his own case. (L. c.) And not only may the state directly kill a guilty person, it may also, when necessary for the *common good* indirectly kill an *innocent* person.^[26] Wholesale organized slaughter, called war, is right and proper when the good of the state requires it.^[27] Whereas sedition is wrong, because it violates the good of "public quiet and civil concord."^[28]

Again, while suicide is unlawful, because, for one reason, a man is part of the community and whoever kills himself does an injury to the community, a man may yet lawfully expose himself to certain death for the *good of the community*. Similarly, though it is illicit to cut off a member of the body, because it is a part of the whole and cannot be removed without injuring the whole (Aquinas, l. c., Q. 65, A. 1), Liguori approves of at least one form of serious mutilation for the good of the community.^[29]

Private property is justified because it tends to the peace of the state.^[30] Lehmkuhl determines the gravity of an injustice not only from the injury done to the individual, but also, "from the injury and danger which the public good and security would suffer, if it were allowed with impunity."^[31]

Social necessity, then, is widely recognized as a valid proof for a right or duty. The binding force of civil law, the wickedness of suicide and self-mutilation, the morality of executing guilty and innocent, the righteousness of private property, are all settled by this norm. Therefore, since the social necessity of the average workman getting a living wage is beyond contradiction, the Consuming Class, who benefit especially by the labor of these workmen, are especially bound to see that these rights are obtained.

We have now considered the arguments advanced to prove that justice binds the Consuming Class to see to it that goods are made under fair terms. These arguments may be summarized as follows:

I. Because as indirect employers the Consuming Class are bound to maintain just conditions for those whom they indirectly employ.

II. Because as buyers the Consuming Class are first bound to pay the full value of the article, which must include sufficient to give the persons employed in its manufacture and distribution a living wage, etc.; and secondly, because the Consuming Class are bound not to buy an article to which the seller has not a just title, the seller of an article made under unjust conditions not having a just title since there is work in the object for which he has not paid.

III. Because the Consuming Class would co-operate in an injustice in three ways: (A) by receiving the goods made under unjust conditions; (B) by furnishing the means for committing the injustice; (C) by urging such production by this practical financial support.

IV. Because the Consuming Class are bound to seek the social good, and that demands the payment of fair wages.

II

So far we have considered only the arguments for an obligation of justice on the part of the Consuming Class. But may there not also be a duty of charity?

Certain general considerations relating to this second of the two greatest commandments, "Thou shalt love thy neighbor as thyself," must be referred to before answering that question.

The precept of charity requires us to love our neighbor as ourselves. And by the term neighbor we mean everyone. No religion, "race, color, or previous condition of servitude" removes a man from the category of our neighbor. A Christian's love must be all embracing. T. H. Green has well said that progress in civilization has been an enlargement of the meaning of neighbor and neighborliness. The meaning of these terms, once confined to one's relatives, then extended to one's city, tribe, nation, has now widened out until it embraces the world.

But while we must look upon everyone as our neighbor, and love him as ourselves, this does not mean that we must love each one in the same degree. We must love him as ourselves, but not necessarily *as much as* ourselves. We must have a universal internal love by which we wish our neighbor well in his spiritual, corporal, and material goods and succor him in necessity.

Yet the amount of good we wish him, and the strength of the obligation to effect it, vary both with the special relationship existing between us and our mutual conditions. By mutual conditions, is meant his state of indigency and ours of prosperity. Almost innumerable grades of necessity may be distinguished, but for present purposes four will be sufficient: (1) extreme necessity, in which a person is in danger of death, or will be very shortly; (2) quasi-extreme necessity, in which one is in danger of falling into extreme necessity or a grave evil, either perpetual or lasting for a long time; (3) grave necessity, where one suffers a serious evil, but not for so long a period, or not so great; (4) common necessity, when one experiences some inconvenience, but not grievous inconvenience.

The obligation varies, too, with the conditions existing on our part. For if the duty of succoring our neighbor from our own goods is to bind, we must be in possession of superfluous goods. Otherwise our own need would have a prior claim. Material possessions may be superfluous to life, that is, just more than enough to keep body and soul together; superfluous to our state in life, or goods without which we should have to sink to a lower social plane; or superfluous to the decency of our state, those over and above what are required even for the proper support of our family in accordance with the usual custom of those in the same position, the education and

starting of our children in life, the giving of charity, gifts, entertainment of guests, etc. This last class of goods may be called absolutely superfluous.

Now, it would not seem rigoristic (especially in these days when the right to any private property is seriously questioned) to say, that a person in extreme or quasi-extreme necessity is to be succored from goods that are necessary to the decent support of our station in life. One merely in grave or common necessity need be helped only out of absolutely superfluous goods. This would certainly be the minimum that any Christian would require.

But this obligation also varies directly according to the closeness of our relationship with the person in want. A connection of blood, whether direct as between father and son, or collateral as between uncle and nephew, evidently produces stronger reciprocal obligations of charity than simple kinship through Adam. So, too, there is a stronger bond between those who have assumed artificial relationships, such as a pastor to his people, or those of the same religious faith, or those in the same social class, or those who have acquired, whether voluntarily or not, associational or economic ties. A captain, for example, has greater obligations of charity towards a man in his own company than towards one in another company, towards one in his regiment than towards one in another regiment, and so on.

Certainly not least strong among these artificial relationships of society is that of employer and employee. There was a time in social organization, when the permanent subjection of Gurth to Cedric brought out more clearly the mutual obligations. The ties of the relationship seemed stronger because more lasting. Fortunately or unfortunately, the right of free contract has abolished this permanency. Men wander from one employer to another, from one city to another, from one country to another. But no transitoriness of employment, no mobility of labor, should obscure the fact that while the relationship of employer and employee lasts, there also exist special and stronger obligations of charity between the two.

Not as strong, probably, as between master and serf, yet nevertheless too strong to be entirely fulfilled by the simple payment of the current wage. As Carlyle says, "Never on this Earth was the relation of man to man long carried on by Cash-payment alone.... Cash-payment never was, or could except for a few years be, the union-bond of man to man. Cash never yet paid one man fully his deserts to another: nor could it nor can it, now or henceforth to the end of the world.... In brief, we shall have to dismiss the Cash-Gospel rigorously into its own place: we shall have to know, on the threshold, that either there is some infinitely deeper Gospel, subsidiary, explanatory, and daily and hourly corrective to the Cash one: or else that the Cash one itself and all others are fast travelling."^[32]

That infinitely deeper Gospel is the teaching of Christian charity. This tells us that there is another bond between employer and employee than a mere "cash-nexus." The needy employee has a claim upon his employer in preference to others, and the employer must discharge it before dispensing charity to those in no greater necessity who stand in no such relation to him. Charity begins at home, and the employee is closer home than one related simply by the tie of a common nature.

Of course, the relation between the direct employer and his workmen is more obvious than that between the Consuming Class (which we have called the indirect employer) and these same men. But the relation of the latter is none the less real and important for being obscure. Ordinarily it will probably be less close than that of the direct employer, but circumstances are conceivable in which the situation would be reversed.

And certainly it would seem that the benefit which the laboring class confers upon the Consuming Class is such that there is some special claim arising upon their charity. Not labor in itself but consumption is the object of work, and this terminus of all activity, the Consuming Class, would seem to be bound both in justice and charity to see that their own satisfaction is not attained at the cost of the comfort and happiness of those who minister to it.

We may conclude, then, that if the direct employers fail to fulfill their duties towards their employees, that the Consuming Class, as being a beneficiary of the work done, are bound to assume these duties. As yet, however, the obligation is abstract as being fixed upon a class and not some particular individual about to purchase an article; and it is hypothetical as simply assuming that employers neglect their duties.

The further question now presents itself: Do employers actually neglect their duties, and what can and should the Consumer do?

FOOTNOTES:

[2] Great Encyclicals of Leo XIII, "On the Condition of Labor," p. 236: N. Y., 1903.

[3] "Pope Pius X on Social Reform," London, 1910: p. 8.

[4] Kelleher, "Private Ownership," Dublin, 1911: p. 174; cf. also p. 179. Italics added.

[5] "Christ, the Church, and Man," p. 74: St Louis, 1909.

[6] Gury: "Compendium theologiæ moralis," n. 579: De just. et jure: Ratisbon, 1874.

[7] See Appendix, 1.

[8] See Appendix, 2.

[9] Cf. John A. Ryan, "The Church and Interest-Taking," p. 31: St. Louis, 1910.

[10] Cf. Bull. U. S. Bur. Lab., Jan. 1, 1911, pp. 876, 878, 881.

[11] Cf. St. Thomas, Summa, 2a 2ae, Q. 77, A. 1-2; St. Alphonsus, Lib. IV, Tr. V, n. 793.

[12] W. Cunningham, "Christianity and Social Questions," p. 114: London, 1910.

[13] See Appendix, 3.

[14] Cf. Liguori, l. c.

[15] See Appendix, 4.

[16] Cf. De Lugo, XIX, II, 4-5.

[17] Cf. De Lugo, L. c., XVII, II, n. 37.

[18] L. c., n. 16, n. 19.

[19] Liguori, Lib. IV, Tr. IV, n. 427.

[20] Ballerini, op. cit., Vol. II, pp. 696-7.

[21] See Appendix, 5.

[22] See Appendix, 6.

[23] See Appendix, 7.

[24] Aquinas, l. c., Q.64, A.2.

[25] L. c., Pt. I, Tr. VI, Sec. V, n. 49.

[26] Liguori, l. c., Lib. IV, Tr. IV, n. 393; Ballerini, l. c, n. 62.

[27] Liguori, l. c., n. 402.

[28] Ballerini, l. c., n. 126.

[29] Liguori, l. c., n. 374.

[30] Aquinas, l. c., Q.66, A.2; Noldin, l. c., De Sept. Praec., n. 368, ed. 8a.

[31] See Appendix, 8.

[32] "Past and Present," Bk. III, Ch. X.

CHAPTER THREE

WHAT IS A JUST EMPLOYER?

The terms "fair wages," "reasonable comfort," "living wage" have often been used in the previous discussion. No attempt was made to make them more definite because it was not necessary at the time. Employers were simply assumed to violate the standard represented by these expressions. But if we are going to decide *de facto* that employers are actually neglecting their duties, we must manifestly have some norm by which to judge them.

What is this standard?

At first sight, this may seem easy to define. But its apparent ease is an illusion. Even the simplest and least questionable standard, that of bare subsistence (and to simplify it still further, restrict the consideration entirely to the question of food), is extremely elusive. Of course a man needs some clothing, a certain amount of fresh air, and a shelter from the weather. But we shall have a sufficiently complicated problem without introducing these factors.

How much food, then, does a man need to repair the daily waste and keep him in good physical condition? This depends to some extent upon the character of the work he does. A stevedore needs more food than a clerk. It will depend, too, upon the climate. Those in northern latitudes require more food, and usually of a more expensive kind, than those living in the tropics, and they ought to have more in winter than in summer. Again, racial characteristics must be taken into account. A Chinese coolie may get fat on fish and rice, or an Italian may do well on cheese and macaroni, while an Anglo-Saxon would starve on such a diet.

In addition to all these points, there is an individuality about the digestive organs that must be weighed. With our exact chemical science it looks simple enough to calculate how much muscle and blood and nervous force are lost in doing a certain amount of work, and just how much food would be required in a given time to make good that loss. This would be easy if we could buy muscle and nervous force done up in neat packages and simply apply them where needed just as we apply a coat of paint to a weather-beaten house. But, unfortunately, we cannot do this. The brawn and nerve must be bought in entirely different forms, broken up by certain interior organs, and gradually sent by a long and complicated assimilating process to the point requiring them. And what becomes of the subsistence standard if the organs of some people refuse to assimilate what those of others heartily relish? or if at different periods, and for no apparent reason, the same man can get no strength or satisfaction from what he formerly craved?

But if we cannot tell what mere subsistence requires are we not getting even vaguer when we add an indefinite "more" to it? When people talk of "frugal comfort," "decent livelihood," "living wage," etc., what do they mean? Do these terms mean to-day just what they did fifty years ago or will mean half a century hence?

A little reflection will show us that they do not. They are largely relative. When the gentry scorned to read and write, farm hands could hardly consider it an injustice not to have instruction in the three Rs; and when everybody went barefoot, it would have been foolish to

riot for shoes. As means of production are perfected, as we get away from the danger of starvation, always threatening primitive nomadic peoples, the standard of living of the more fortunate rises, as does that standard which they are willing to allow the lower classes, and which the lower classes demand.

As a consequence, what is looked upon in one age as just and generous, may in another be considered thoroughly unfair. Concrete standards of justice vary with the time and are soon superseded by others. This is an important fact, and it must be mastered before one can use the current standard with honesty or intelligence. The principle of justice upon which the changing concrete standard is based, the moral right of each individual as a human being to the fullest development of all his faculties consistent with such rights in others, is doubtless unchanging. But it is conditioned by the stage of production that society has reached, upon how much there is to go round; and the wage necessary to secure this standard is conditioned by governmental supplement such as free education, insurance, etc. It would seem impossible, therefore, to determine the exact wage that a particular individual is entitled to until we can determine the total net product and this individual's contribution to it as compared with other individuals. We are not aware that this has been done.

The attempt has been made, however, to establish both the absolute minimum standard and this relative standard. In the sixteenth volume of the report of the United States Bureau of Labor on "Woman and Child Wage-Earners in the United States," the former is fixed at \$400.00. But have we an absolute minimum below which wages could not fall without endangering existence when a girl of ten and a boy of six are allowed more money for clothing than their mother?

Upon the relative living wage, whole volumes have been written. But they would seem either to deal with the concrete expression of the standard of a particular class, or, if they do attempt to establish the right of individuals here and now to a particular remuneration in money, they do not quite prove their contention.

But there are people who believe that the right of the laborer to a specific wage (and hence the employer's obligation of paying it) can be demonstrated. Dr. John A. Ryan, whose treatise on "The Living Wage" has attracted marked attention, has made such a claim for an estimate of \$600.00 as a family living wage in cities of five hundred thousand or over in the United States. [\[33\]](#)

This was in 1906 and the cost of living has advanced considerably since then. Dr. Ryan would probably, therefore, not consider too high the estimate of the Bureau of Labor (l. c.) of \$600.00 for cotton mill operatives in the South. Under this standard, the father supports the family, the mother stays at home looking after the house, and the children go to school. It includes insurance.

Now for the sake of argument let us assume that laborers have a strict right in justice to a standard represented by \$600.00 a year in a Southern mill town. I must reluctantly admit that \$600.00 cannot be proved conclusively to be the sum to which all laborers have a right. But for the time being we shall take it for granted, and from the standpoint of this assumption judge the justice or injustice of industrial conditions.

I have said that I do not think that this obligation can be *proved conclusively*, that is, as conclusively as a proposition in geometry. But I do think that it is capable of the same proof that we have for many other moral truths that pass unquestioned. We must beware of applying to

new propositions that corrosive logic which, if impartially exercised on old and new alike, would destroy the very basis of morality.

This principle, that moral truths cannot be absolutely demonstrated, is generally admitted and many concrete examples could be given from prominent ethicists: thus De Lugo in speaking of so fundamental a question as the unlawfulness of suicide, does not hesitate to say: "The whole difficulty consists in assigning a reason for this truth: for though its [suicide's] turpitude is immediately apparent, it is not easy to find the foundation of this judgment: whence (*a thing that happens in many other questions*) the conclusion is more certain than the reason adduced by various authors for its proof."^[34]

Again, Ballerini, in treating of the unlawfulness of one of the sins mentioned by St. Paul in the sixth chapter of his first Epistle to the Corinthians, remarks that "it is most difficult to assign a reason for this." Then, after rejecting all the reasons usually brought forward, he adds: "It must be admitted that there are some practical truths necessary for the right association of men with each other, which men feel and perceive by a sort of rational instinct, whose reason, nevertheless (at least a demonstrative one), when these same men seek it analytically, they find it hard to discover. It would seem that nature, or the Author of our nature, wished to supply the defect of the exercise of reason by an instinct or rational sense of this kind: ... Among the truths of this nature, the one of which we treat happens to be found."^[35]

If unquestioned authorities like Ballerini and De Lugo admit their inability to prove such fundamental and important obligations (it will be noted that De Lugo says there are *many* such) as those of refraining from the above mentioned sins, it need not surprise us to find that the obligations of Consumers cannot be proved *apodictically*. It would be foolish, therefore, to claim absolutely to demonstrate this obligation. All that can be done is to adduce the same proofs that Aquinas, Suarez, and other master minds have used to fix other duties, and show that they have equal force in the present discussion. It is simply the familiar argument *a pari*, and the claim would seem reasonable, that any objectors meeting these arguments on purely rational grounds, must show that they do not equally apply to this obligation, or else deny their force as proof for the other duties.

FOOTNOTES:

^[33] Others have approximated this estimate, though possibly without giving it exactly the same ethical implications as Dr. Ryan. Thus Chapin, "Standard of Living in New York City," N. Y., p. 245, claims \$800.00 as the minimum for New York City. Miss Butler, "Women and the Trades," N. Y., p. 346, says \$7.00 a week for a single woman in Pittsburgh. The United States Bureau of Labor in the third volume of its report on "Woman and Child Wage-Earners in the United States," p. 560, declares for \$2.00 a week per capita.

^[34] See Appendix, 9.

^[35] See Appendix, 10.

CHAPTER FOUR

THEORY OF INDUSTRIAL ORGANIZATION

Modern industrial conditions may be considered either *a priori* or *a posteriori*, either theoretically or *de facto*. We may examine the principles of economic organization, and conclude that they will or will not lead to low wages; or we can go to the facts themselves, and decide from an examination of actual conditions whether or not wages are low, etc., always remembering the standard we have adopted.

Beginning with the first method, we may, speaking roughly and with sufficient allowance for monopolies, say that we live under a competitive system. Men compete with others for their share in the product of industry. Goods are not put in one general fund and distributed according to each one's needs. Nor are they awarded to suit the whim of some ruler. Undoubtedly our present industrial organization is individualistic rather than socialistic, and its chief characteristic is probably a rivalry between its various members. Some assume that competition is universal and unrestrained. Then they draw conclusions as to the present system from what would happen if such competition prevailed. Others forget that competition is as universal as it really is, and that it exists not only between laborer and laborer to get the job, but between capitalist and capitalist to secure the laborer.

To subscribe to either of these errors will vitiate any conclusions as to social policy. For if unrestrained competition have certain evil tendencies, we cannot therefore assume that the present restricted form will have such results. And the fact that competition exists between capitalists as well as between laborers has very wide-reaching implications. It means no less than that competition may raise wages as well as lower them.

The average person is apt to look upon an object as drawn only to the earth by gravitation. He forgets that the same force is also pulling at it in an opposite direction. And in the same way the average person is likely to forget that competition is continually pulling wages both up and down. If we imagine some object suspended between the earth and the moon, and being constantly drawn towards each according to some power inherent in them which varies from time to time so that the object now approaches one and now the other, we shall have a rough illustration of how competition affects wages.

We can look upon the amount of wages as the object of attraction between competition on the part of laborers and competition on the part of capitalists. According as competition among capitalists is keen as compared with that among laborers, wages will rise, and vice versa; just as when, in our illustration, gravity was strong in the moon, the object rose towards it, and when it was stronger in the earth the object fell towards that body. But in both cases the result is due to the same force, though acting from different points. It would be an error, therefore, to attribute all the evils of our present system to competition, and all the good to some other agency. Competition has good results as well as bad, and this two-fold influence must always be remembered.

Doubtless absolutely unrestrained competition between laborers with no corresponding rivalry between capitalists would depress wages. But such competition does not exist. Competition is

not absolutely unrestricted. It is limited by organization among the workmen, by legislation, by natural ability, and in various other ways. As a result, the effects are limited in various ways. If a bricklayers' union is strong enough practically to eliminate competition between this class of laborers while capitalists compete with each other to obtain their services, then the working out of competition has been modified in such a way as to have an upward effect upon wages.

Competition, then, is not necessarily bad. In many cases, competition is not only the life of trade, but the builder of character as well. As a whole, those who have to earn their living amid keen business rivalry are more energetic, quickwitted and resourceful than those government employees who live in a somewhat listless, non-competitive atmosphere. And the superiority of Western to Eastern civilization and character may be due to the fact that there competition has been too much limited by caste systems, repressive legislation, and unchanging custom.

Under the restricted form of competition existing to-day, many employers pay living wages and treat their employees fairly in every way. Indeed, the entrepreneur sometimes finds it to his advantage to give his employees even more than strict justice would demand. When competition for workmen is keen between employers, certain inducements may be necessary to prevent experienced men leaving and to avoid the consequent loss of breaking in new laborers.

At any rate we find that many employers do all that can reasonably be expected. For instance, in contrast with the conditions of the garment trade prevailing in many places, the Pittsburgh Survey found two factories in that city to be run on excellent lines. They were well-lighted by large windows, the ventilation was good, the walls newly whitewashed, and the floors swept and scrubbed. In one, indeed, the upper windows were opened at intervals, and the work-rooms had windows on three sides. (Butler, l. c., p. 109.) Nine others were good because they were swept daily and exhibited a manifest standard as to a work-room (l. c., p. 107). One firm, too, was found to allow its employees to share in its progress. Thus when new buttonhole machines were introduced a few years ago the girls could turn out a third more work than formerly, but they were paid at the same piece-rate (l. c., pp. 119-120).

The variation between individual stores as regards wages will be shown from the following table, adapted from page 121 of the first volume of the Pittsburgh Survey:

Article manufactured	No. of operators	Weekly wages		Average
		Min.	Max.	
Shirts	15	\$ 6	\$12	\$ 7
Shirts	1	10	10	
Shirts	3	8	10	8
Shirts	24	6	8	8
Shirts and Overalls	39	4	12	8
Overalls	26	6	10	8
Overalls	75	6	10.5	7
Shirts	5	7	11	
Shirts	18	7	14	10
Shirts	51	5	15	8
Shirts	7	6.5	12	8
Pants	114	4	14	9
Pants	37	3	12	8

Article manufactured	No. of operators	Weekly wages		Average
		Min.	Max.	
Pants	6	3	9	7
Pants	284	4	9	7
Pants	10	4	9	8

Such differences are reproduced in all the needle trades.^[36]

Similar distinctions are also found in laundries. A very few have properly constructed plants, with wash-rooms on the upper floors and some arrangement for carrying off the inevitable steam (Butler, l. c., p. 170). In one, however, there are "exhaust pipes over the mangles, and fans in the walls, and there are windows along the side. The feeders are seated while handling small work, and the folders have comfortable benches" (p. 174). Wages, too, are considerably higher here than in other laundries. Four laundries in Pittsburgh have adopted an improved cuff-ironing machine which saves the operator from the extreme physical exertion of the old style (p. 182). A North Side laundry has set aside a bright sunny section of the building "for a lunch-room; there are attractive dishes, tables covered with white cloths, comfortable chairs. The noon interval is an hour and a half" (p. 312).

Turning to mercantile houses we also find a great contrast. Some provide only half a dozen chairs for five hundred girls, while others do not allow chairs to be used at all.^[37] Many stores have a working week at Christmas of from seventy-two to eighty-four hours without extra pay (Butler, l. c., p. 303). "Some employers are generally reputed among salesgirls to assume that their women employees secure financial backing from outside relationships, and knowingly pay wages that are supplementary rather than wages large enough to cover the cost of a girl's support." (L. c., p. 306.) Indeed, some employers frankly admit this and advertise for saleswomen, "preferably those living at home."^[38]

Compare with these stores the one that "exemplifies a higher standard at each point under discussion; in the comprehensiveness of its ventilating system; in its observance of the spirit of the law in providing an average of four seats to a counter for its employees; in the fact that it has no Christmas overtime; ... and finally in its wage standard.... Seven hundred girls are paid \$7.00; ... one hundred girls are paid \$8.00 to \$10.00, and sometimes \$15.00 in the case of a head of stock." (Butler, l. c., p. 304.)

Some glass factories furnish shutters over the leer-mouths to protect employees from heat;^[39] prevent radiation from the melting tanks by various devices (l. c., p. 79); provide blue glass screens at the glory holes (ib.); artificially cool the shops in summer (l. c., p. 80); work shorter hours (p. 98); eliminate night-work (p. 104); provide hoods and exhausts for the etching baths (p. 322) and the sand blasts (p. 317). In one woolen factory the milligrams of dust in a cubic centimeter of air were reduced from twenty to seven by the installation of an exhaust.^[40]

The fact, too, that organizations such as trade unions and consumers' leagues can allow the use of their labels to certify that an article has been made under fair conditions, is a striking confirmation of the fact that some manufacturers do maintain proper factories and treat their employees justly.

Nevertheless, competition has a black as well as a silver lining. It is self-evident that for any length of time laborers cannot get more than the total product of their work coupled with the

necessary capital. Nor will it be denied that capitalists will always be in a position to appropriate a part of this joint product, how much depending very largely upon the relative supply of capital and labor and the keenness of competition between them. The share that is left and which goes to the laborers is not divided equally. It is distributed competitively. Those who are economically strongest seize what they can, and the weaklings must be content with the remainder. Frequently this is not sufficient to afford them the standard we are considering, but they are helpless to remedy matters.

And there are some things that tend to keep this share at a minimum. Industrial organization is not simply a case of competition between capital and labor, but capitalists are competing with capitalists as well as with laborers, and laborers with each other as well as with capitalists. The result is that the weakest parties to this fray get hit hardest, and their only hope would seem to be the addition of some other check to competition that will prevent the present distressful consequences. This is not to say, as Socialists argue, that competition is to be abolished entirely, for we have seen that it may really have excellent effects for the workman. Rather it is to be harnessed and guided into beneficent channels, as a miller directs a stream to turn a wheel. He does not destroy the stream but makes it do his will.

An analysis of industrial society will show, I think, that despite the good work the stream of competition is doing, there is a little eddy undermining the bank and working havoc in some places. The description of one phase of competition, even though it be isolated from the rest, will probably give a correct enough idea of how this force while working out to the advantage of some, is resulting in harm to others. The considerations that must be omitted in a short sketch do not change the matter essentially. They limit the hardship wrought, but they do not prevent a considerable number of workmen from being mercilessly ground down.

Modern industry, then, is organized for sale, not use. Business men care nothing about what they manufacture so long as they can find a profitable sale for the article. The typical employer makes shoes not because he likes to, as an artist may paint a picture. He does it because he thinks a sufficient number of purchasers will want this commodity at a price paying him for his trouble.

But to get these purchasers he must (unless he have some sort of monopoly) offer his product at a price no higher than other manufacturers are willing to take for the same article. If he deviate only a few cents, the expert buyers of retail stores will know it and go elsewhere. There is a constant demand for cheapness, a universal eagerness to "get your money's worth"; and factories and retail firms must meet it, or see their trade taken away by competitors. The intense desire of individual buyers for minute savings of a cent here or a fraction of a cent there, becomes, in the aggregate, an irresistible Demand with a capital D, "a blood-power stronger than steam," compelling the retailer (who in his turn reacts upon the manufacturer) to sell cheap. "The phenomena of sweating are a standing warning against the dangers that are inherent in unregulated competition.... The underlying cause of the evil," affirms a noted English economist, "is certainly to be found in the indiscriminate preference of the public for that which is low-priced."^[41]

The seller, then, must meet the Consumer's demands; and since these are for cheapness, he must sell cheap. But how can cheapness be obtained? Only by cutting down the expenses of production. Other manufacturers possess the same machinery, about the same advantages of location, and approximately the same talent. Given a system of unrestrained competition, each

firm will have to count costs to within a fraction of a cent and reduce expenses to the lowest possible amount. To this end wages are often cut, workmen speeded, and the health of employees endangered.

"No one of us," says the manager of a big department store in St. Louis, "has any particular consideration in the purchase price of goods; the ease of communication and the large amount of advertising make it impossible for us to have any serious advantage over others in point of selling price. The women can go from one store to another, effectually preventing one store from being materially higher priced on the same goods than another.

"The great struggle is over the expense account. This brings up the whole question of salaries, the amount that can be paid to employees directly, the amount that is spent by us in caring for them, compensation for length of service.... All these have to be handled from the expense account, and it is on this point that some of the most delicate questions of morals arise, and they involve both the employer and the customer in the treatment of the employee."^[42]

It is true that some economists have maintained that the price of an article must cover its cost of production.^[43] But as Professor Carver says, such an opinion "is probably the source of more error and confusion in economic discussions than any other mistake." (Loc. cit.) It may be granted, indeed, that the price will never be much below the *expenses* of production, understanding by "expenses of production" what the entrepreneur must pay out in wages, interest, etc. Yet even this is not because the expenses of production directly govern prices. They affect the price only indirectly by limiting the supply. For no entrepreneur will long continue in business if he be not able to sell his product at a profit, and his going out of business will decrease the supply and so raise the price by the well-known law of supply and demand.

But "costs of production," being the sum of the efforts and sacrifices of all concerned in making an article, are very different from "expenses of production."^[44] It is by no means true, as Professor Sidgwick pointed out twenty-five years ago, that the amount necessary to enable a laborer to keep himself in good physical condition and reproduce himself forms a minimum below which the self-interest of an employer will not allow wages to fall.^[45]

For in the first place, there is no assurance that a laborer is going to spend his wages for this purpose. How, then, can it be to his employer's advantage to pay him more than he is willing to take, when the surplus may be squandered in drink? And even assuming that the generality of laborers must receive such an amount in order to meet the demand for workmen, still they need not all receive it from their employers. An industry, such as the department stores, may try to get girls who obtain part of their support from fathers or brothers employed in other businesses.^[46] Or wages of large classes may be supplemented by public or private alms. This was long the case under the English Poor Law. As the land-occupiers paid the greater portion of the rates, it was to the Manufacturers' advantage to have wages really come partly from the parish.

And the numbers of laborers can be kept stationary without each workman, or even every class, receiving enough to perpetuate himself. For their ranks can easily be recruited from an over-supply of some higher class. There is a constant pressure upon the upper strata, forcing down the unfit, and it is readily conceivable that these failures should take the places of still greater failures below.

There is, then, no physical or economic necessity forcing employers to pay fair wages to each individual worker, in the sense in which we are using the word "fair" for the sake of argument.

"The effort to organize business with a view to cheap production, may be carried on in such fashion as to press unduly on those who work for wages; employers are in a position in which they may be able to drive hard bargains as to hours of work and rates of pay, and to pass on the risk of loss, which arises from fluctuations of business, to be borne by those who are thrown out of employment."^[47] And not only may this, but there is every inducement and almost necessity urging that it should, be done except where the workmen are organized. No employer can afford to pay a workman more than his surplus over and above what would be produced without him, and it will be to his advantage to pay less. He is a purchaser of labor, and like every other purchaser wants to get that commodity at the lowest figure. And there are several differences between him and the purchaser of any other commodity that give him a distinct advantage in the bargain.

In the first place, not merely increased profits, what would be represented by a housewife's saving in shopping, urge him to buy cheap labor, but his own industrial existence, which will be lost if he does not get his workmen as cheap as his competitors. Having a greater prize at stake, he develops a greater skill. He has a wider view of economic conditions, a better knowledge of the state of trade elsewhere, and so he can outbargain the unorganized laborer.

Again, the laborer is in a worse position than the seller of almost any other commodity. For what he does not sell to-day disappears absolutely. If he does not dispose of it now he cannot to-morrow. A fruiterer can keep his oranges until the next day, if he is not satisfied with the current price. But to-day's labor can be sold only to-day. And if it be not sold, it is probable that the workman will be physically less fit to-morrow. Yet even if he does accept the wage offered, and it is less than enough to repair the daily waste of force, the same result will be brought about gradually. He is, therefore, confronted by the dilemma of taking what the idle are willing to accept, or becoming idle himself.

It needs only the imagining of one's self in the position of the unemployed to see that there is hardly any limit below which the wages of the weakest may not fall. A man without special skill and without savings, with not only himself but others to look out for, will be glad to get even what he knows will not completely support him.

"Without organization and by means of individual bargaining, wages are drawn downward toward the level set by what idle men will accept, which may be less than they will produce after they receive employment and will surely be less than they will produce after they have developed their full efficiency. When labor makes its bargains with employers without organization on its side, the parties in the transaction are not on equal terms and wages are unduly depressed. The individual laborer offers what he is forced to sell, and the employer is not forced to buy. Delay may mean privation for the one party and no great inconvenience or loss for the other. If there are within reach a body of necessitous men out of employment and available for filling the positions for which individual laborers are applying, the applicants are at a fatal disadvantage."^[48] Such is the opinion of a conservative economist with an especially kindly feeling towards the competitive system.

It would seem, therefore, that the competitive organization of industry has a tendency to crush out the weaklings. How numerous are these weaklings, we shall now discuss.

FOOTNOTES:

- [36] L. c., pp. 121, 122, 134, 152; U. S. Bur. Lab., "Men's Ready-Made Clothing," p. 303.
- [37] Butler, p. 301; U. S. Bur. Lab., "Women Wage-Earners in Stores and Factories," pp. 109, 178.
- [38] U. S. Bur. Lab., l. c., p. 22; Report Minneapolis Vice Commission, 1911, p. 127.
- [39] U. S. Bur. Lab., "Glass Industry," p. 54.
- [40] U. S. Bur. Lab., "Industrial Hygiene," 1908, p. 79.
- [41] W. Cunningham, "Christianity and Social Questions," pp. 122-123: London, 1910.
- [42] "The Socialised Church," p. 120, address on "The Relation of the Church to Employees in Department Stores," by Hanford Crawford, B.S.: St. Louis, N. Y., 1909.
- [43] Cf. T. N. Carver, "Distribution of Wealth," p. 31: N. Y., 1908.
- [44] Cf. H. R. Seager, "Introduction to Political Economy," pp. 53-54: N. Y., 1908.
- [45] H. Sidgwick, "Principles of Political Economy," p. 297: London, 1887.
- [46] Cf. "Wage-Earning Women in Stores and Factories," p. 22: U. S. Bureau of Labor, 1911.
- [47] W. Cunningham, "Christianity and Social Questions," p. 118: London, 1910.
- [48] J. B. Clark, "Essentials of Economic Theory," pp. 453 and 456: N. Y., 1907.
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CHAPTER FIVE

INDUSTRIAL CONDITIONS: WAGES

What has been said regarding industrial conditions is not mere theorizing. Private, state and federal investigations into actual conditions confirm the contention that there is a large margin of unemployed, and that a considerable portion of those who do find employment are overworked and underpaid regardless of life and limb. Anyone who studies the various official reports on this subject, must conclude that Dr. Devine's summary of the *Pittsburgh Survey* was well within the truth and is applicable to practically the whole country:

"Low wages for the great majority of the laborers employed by the mills, not lower than in other large cities, but low compared with the prices—so low as to be inadequate to the maintenance of a normal American standard of living; wages adjusted to the single man in the lodging house, not the responsible head of a family.

"Still lower wages for women, who receive, for example, in one of the metal trades, in which the proportion of women is great enough to be menacing, one-half as much as unorganized men in the same shops and one-third as much as men in the union.

"The destruction of family life; not in any imaginary or mystical sense, but by the demands of the day's work, and by the very demonstrable and material method of typhoid fever and industrial accidents; both preventable, but both costing in single years in Pittsburgh considerably more than a thousand lives, and irretrievably shattering nearly as many homes."^[49]

Assuming, throughout this discussion, that \$6.00 a week (\$1.00 a week less than Miss Butler's estimate), or \$312.00 a year is the lowest fair individual wage; and \$11.00 a week, or \$572.00 a year is the lowest fair family living wage:^[50] it is easy to show from reliable reports that scores of thousands of individuals and heads of families fall below this standard. But in considering any figures quoted here, or to be found elsewhere, it should always be remembered that the actual wage may be much below the rate of wage. One employed at the rate of \$6.00 a week may not make anything like that because of loss of time.

How much is lost through unemployment, it is hard to say. The United States Industrial Commission was of the opinion, that "it is impossible to collect statistics of any value whatever relative to the unemployment of unorganized labor, among whom lack of employment is a much more serious thing than it is with skilled or organized labor."^[51] It would seem, however, that in the clothing trades, the employees lose at least one day in every six.^[52] According to a Federal report issued in 1911, in Baltimore one-fifth of the force worked between five days and full time; one-tenth between four and five days; one-seventh between two and three, and five per cent, two days or less.^[53] A report of the New York State Bureau of Labor for 1906^[54] contains the following suggestive table regarding the unemployment of certain classes of *organized* labor. It may rightly be assumed that among unorganized workmen conditions are worse.

TABLE I.
NO. AND PROPORTION OF UNEMPLOYED WAGE-EARNERS

Mon.	No. of unions report'g	No. of memb'rs report'g	No. idle at end of month	Per cent idle	Per cent idle				
					1905	1904	1903	1902	1902-5
Jan.	191	84,539	12,682	15.	22.5	25.8	20.5	20.9	22.4
Feb.	190	85,155	13,031	15.3	19.4	21.6	17.8	18.7	19.4
Mch.	192	25,956	2,952	11.6	19.2	27.1	17.6	17.3	20.3
Apr.	192	90,352	6,583	7.3	11.8	17.0	17.3	15.3	15.4
May	192	91,163	6,364	7.0	8.3	15.9	20.2	14.0	14.6
June	192	92,100	5,801	6.3	9.1	13.7	23.1	14.5	15.1
July	195	94,571	7,229	7.6	8.0	14.8	17.8	15.6	14.1
Aug.	195	94,220	5,462	5.8	7.2	13.7	15.4	7.1	10.9
Sept.	195	94,290	5,252	6.3	5.9	12.0	9.4	6.3	8.4
Oct.	195	92,052	6,383	6.9	5.6	10.8	11.7	4.2	9.8
Nov.	195	93,042	7,052	7.6	6.1	11.1	16.4	14.3	12.0
Dec.	195	93,318	14,352	15.4	11.1	19.6	23.1	22.2	19.0
Mean for year					9.3	11.2	16.9	17.5	14.8
						15.1			

Other deductions that must be made from the apparent wage are the withholding of pay for long periods, exorbitant prices and rents obtained through company stores and houses, fines, and increases in the cost of living.

Therefore, it is not unreasonable to conclude that the per diem or weekly wage rate as given by the Bureau of Labor and other reports, affords, by itself, an accurate statement only of the maximum yearly wage. This should always be remembered in judging any facts hereafter adduced.

In the fifteenth volume of the bulletins of the Bureau of Labor will be found many interesting tables bearing on this question of wages. But as it is impracticable to quote them at any length here, a few of the more salient facts must suffice. Laborers in the flour mills of the South were working twelve hours a day for 11c. an hour.^[55] Women in the carpet factories of the North were getting no more.^[56] In the factory product of the clothing trade great numbers received less than 10c., 11c., and 12c. an hour (p. 35), and the compensation in sweatshops was much less. Male boarders in the knit-goods factories of the North-Central section were averaging less than \$387.00 per annum. Women in the same factories were getting much less, some even as low as 7c. and 8c. an hour (p. 43). Silk-spinners in the North-Atlantic section were making only \$5.00 a week, or less than \$260.00 a year, for a nine and one-half hour day (p. 58). Male cigar-stemmers in the same section were making \$6.00 a week (p. 59). In Michigan, in 1905, there were 3414 boys between fourteen and sixteen earning on an average 77c. a day, and 1725 girls making 64c. a day. In 1904, the average yearly earnings in the food preparations industry was \$441.00; in salt production, \$451.00; on tobacco and cigars, \$393.00 (p. 334).

In New Jersey, in 1904-5, the average earnings in the cigar industry were \$316.70; silk-weaving, \$480.11; woolen and worsted goods, \$373.43. In the same State in 1903-4, there were 1985 adult males receiving less than \$3.00 a week; 3234 between \$3.00 and \$4.00; 5595

between \$4.00 and \$5.00; 6037 between \$5.00 and \$6.00; 12,406 between \$7.00 and \$8.00; 14,300 between \$8.00 and \$9.00, though \$9.00, working full time every week, would be only \$468.00 a year.

The very latest reports available confirm these figures. In the cotton textile industry alone, 29,974 employees, or 53.77% of the total number investigated (11,484 men and 18,490 women) were being paid at a rate less than \$6.00 a week.^[57] If we take the \$11.00 rate, or family living wage, we find that 19,382 men (89% of the total) fall below it (l. c.). And as only 55% of the men employed in this industry were single (l. c., p. 132), at least 7285 of these men must have been married, and hence receiving less than the normal family living wage. It must be remembered, too, that these figures are based upon the assumption that full time is made. Could we get the actual wages, these groups would be much larger. This is shown by the table on page 329 of this report, where actual wages average \$1.32 less than computed full time earnings.

If we turn to the clothing industry, we find conditions even worse. In the five cities investigated (New York, Chicago, Baltimore, Rochester, and Philadelphia), 6788 employees, or 37% of the total (1217 men and 5571 women) were being paid at a rate less than the individual living wage of \$6.00. Taking the family living wage of \$11.00 as our standard, 3499 men, or 62% of the total, fail to reach it.^[58]

Again it must be repeated, that the actual wages are from 7½ to 20½% lower than these figures (l. c., p. 161). In one New York special order shop, the earnings for December fall to 55% of the average (l. c., p. 178).

These figures, however, are for shop-workers only. The *average* wages for home-workers are: Chicago, \$4.35; Rochester, \$4.14; New York, \$3.61; Philadelphia, \$2.88; and Baltimore, \$2.24. "Here again the caution must be borne in mind that home-workers' wages, low as they are, often stand for the earnings of more than one worker. Sometimes, as reported on the books of the firm, it represents the earnings of more than one week" (l. c., p. 139). Ninety-eight per cent. of the married shop-finishers, and practically all of the home-finishers, too, earned less than \$350.00 a year (l. c., p. 226). The average yearly earnings of home-workers are given as varying from \$120.00 in New York to \$196.00 in Rochester. From page 235 to 239 inclusive, the details of the earnings, size of families, and number of those working is gone into at great length. It must suffice here to say that families of five are recorded whose total yearly earnings are less than \$100.00. One family of eleven is chronicled whose yearly income was \$445.00, sixty-five dollars of which was earned by home-work. Working six days a week for ten hours a day, the home-worker cannot hope to make more than \$156.00 a year.^[59]

Seventy-six per cent. of the women employed in the glass industry earned less than six dollars a week.^[60] Their average annual earnings, in fact, are stated as ranging from \$163.00 for those sixteen years old to \$292.00 for those from twenty-five to twenty-nine (l. c., p. 544). Nearly one-third of the female department-store employees receive less than \$6.00 a week.^[61] Yet many of them had other persons depending upon them (l. c., p. 55). One family, consisting of a mother, seventeen-year-old daughter, and three younger children, was supported by the daughter's \$5.00 a week. They managed it by living in two rooms and eating practically nothing besides bread and tea or coffee (l. c., p. 56).

In New York State in 1906,^[62] it was found that even among organized laborers reporting to the Bureau of Labor, 6078 men and 2011 women were earning less than the lowest individual living

wage (\$300.00), and 59,226 men and 8881 women (17.6% and 63.8% respectively) were earning less than the lowest family living wage (\$600.00). If conditions were so bad among union men, they were probably much worse among unorganized workers.

In Pittsburgh, in the canneries, 59% of the girls make only \$6.00 a week, or less (Butler, l. c., p. 38). Of those employed in the confectionery trades, only twenty-one earn as much as seven dollars (l. c., p. 50). And these two trades have inevitable dull seasons that cut wages much below these figures. Seven hundred out of nine hundred girls in the cracker business receive less than \$6.00 a week (l. c., p. 70). Laundries are amongst the worst paying establishments, and there is practically no chance of advancement. The shakers-out never earn more than \$4.00 a week, and usually only \$3.00 or \$3.50 (l. c., p. 170). No mangle girl makes more than \$6.00 and most between \$3.00 and \$5.00 (p. 173). Broom-making often gives only \$2.50 a week, and the highest is \$5.00 (p. 252). Many box-makers earn only 60c. or 80c. a day, and 80% of the girls are being paid less than \$6.00 a week (p. 261). Packing soap-powder in stifling rooms pays \$4.50 (p. 270). Nearly 50% of the girls in the printing trades are below the \$6.00 standard.

These, then, are the facts concerning wages. But no social fact can be entirely isolated. It is always intimately connected with many others, and no treatment of wages can be at all satisfactory without going to some extent into the ramifications of this subject along other lines. A chapter, therefore, will be devoted to the question of health and of morals as affected by industrial conditions and low wages.

FOOTNOTES:

[49] Report of annual convention of the American Sociological Society, 1908, or Charities and the Commons, now the Survey, March 6, 1909.

[50] Cf. p. 36f for discussion of fair wage.

[51] Vol. XIX, p. 754.

[52] Loc. cit., p. 755.

[53] U. S. Bureau of Labor, "Men's Ready-Made Clothing," p. 113.

[54] P. XI.

[55] Loc. cit., p. 37.

[56] P. 31.

[57] U. S. Bureau of Labor, "Cotton Textile Industry," p. 305, 1910.

[58] U. S. Bureau of Labor, "Men's Ready-Made Clothing," p. 129.

[59] L. c., p. 301; cf. also 20th Annual Report Bureau of Labor Statistics of N. Y., pp. 66-67, here quoted.

[60] U. S. Bureau of Labor, "Glass Industry," p. 405, 1911.

[61] U. S. Bureau Lab., "Wage-Earning Women in Stores and Factories," p. 46, 1911.

[62] Report of Bureau of Labor Statistics of New York for 1906, p. XXXI.

CHAPTER SIX

INDUSTRIAL CONDITIONS: HEALTH

The inevitable result of low wages is poor health. Bad housing conditions and insufficient food must follow upon the heels of scanty pay, unless the wages are supplemented in some other way; and that means anemia, tuberculosis, typhoid, and general physical debility. "In the New York block" bounded by E. Houston, Mott, Prince, and Elizabeth Sts., "one of every nine children born dies before it attains the age of five years. The death and disease rates are abnormal. The death rates for all ages in the City of New York in 1905-6 was 18.35 per thousand, and for those under five years it was 51.5; but in this block it was 24.0 for all ages and for those under five years it was 92.2."^[63] "Nothing could be added to or taken away from these homes to add to their squalor." (P. 296.)

The conditions of many workers' homes can be learned in detail from pages 254-259 of the Federal report just quoted. Here only a few of the leading facts can be mentioned. Thus in Pittsburgh 51.1% of the families investigated had as many as three persons per sleeping room.^[64] Eleven per cent. of female factory and miscellaneous employees and nine per cent. of store girls are rated as having "bad" housing conditions and bad food.^[65] Very few girls doing "light housekeeping" get proper breakfasts (l. c., p. 18), or, indeed, any other meals. It is not because they can't cook, but because they have to keep food expenses to a minimum in order to buy clothes, pay room-rent, doctors, etc.

"'You see I'm dieting,' said a frail slip of a department-store girl as she held out her tray upon which the cafeteria cashier, in the presence of the Bureau's agent, put a two-cent check, covering the cost of the girl's lunch—a small dish of tapioca. She may have been dieting, but the evidences were pathetically against the need thereof, and there were some things telling other tales to a thoughtful observer. The girl's shoes and waist and skirt were plainly getting weary of well-doing, and to hold her position as sales-woman they must soon be replaced" (l. c., p. 17).

The tables on pages 80 and 81, to one who practises the "great transmigratory art" (as Charles Reade calls it) of putting yourself in another's place, tell pitiful stories of making ends meet (l. c., pp. 54-55).

NUMBER OF WOMEN WAGE-EARNERS KEEPING HOUSE CLASSIFIED BY COST OF LIVING AND WAGE GROUPS

Average weekly earnings	No. of women with average weekly cost of living (food, shelter, heat, light, laundry)													
	Un-der	\$1.00 to	\$1.50 to	\$2.00 to	\$2.50 to	\$3.00 to	\$3.50 to	\$4.00 to	\$4.50 to	\$5.00 to	\$5.50 to	\$6.00 to	\$6.50 and over	Total
	\$1.00	\$1.49	\$1.99	\$2.49	\$2.99	\$3.49	\$3.99	\$4.49	\$4.99	\$5.49	\$5.99	\$6.49	over	
\$1.00: \$1.49	..	..	1	..	..	..	1	1	..	..	..	..	..	3
1.50: 1.99	..	..	..	1	..	..	..	..	..	..	..	..	..	1
2.00: 2.49	..	1	1	1	2	1	..	..	..	..	..	..	..	6
2.50: 2.99	..	1	..	2	1	..	..	..	..	..	..	..	..	4
3.00: 3.49	..	..	2	2	2	1	..	..	..	..	..	..	..	7
3.50: 3.99	1	..	1	2	1	..	3	..	..	..	1	..	..	9
4.00: 4.49	2	2	2	2	1	3	1	..	..	..	..	..	..	13
4.50: 4.99	1	5	4	6	..	5	3	..	2	..	1	..	..	27
5.00: 5.49	2	..	3	2	2	3	3	1	2	..	1	..	..	19
5.50: 5.99	..	2	2	2	2	2	1	3	1	..	2	..	..	17
6.00: 6.49	..	3	2	5	3	3	2	1	..	..	..	1	..	20
6.50: 6.99	..	..	..	2	1	..	1	2	2	..	..	..	1	9
7.00: 7.49	..	1	4	1	4	4	2	..	..	..	..	..	..	16
7.50: 7.99	1	..	3	3	1	2	3	5	..	..	2	1	1	22
8.00: 8.49	..	1	3	1	3	5	5	2	2	..	1	..	..	23
8.50: 8.99	..	..	..	..	1	1	1	1	1	..	..	..	..	5
9.00: 9.49	..	1	..	..	..	2	..	2	2	1	1	..	1	10
9.50: 9.99	..	..	..	..	1	..	1	1	1	..	..	1	..	5
10.00: 10.49	..	..	..	..	..	2	..	..	..	..	..	..	2	4
Total	7	17	29	32	26	36	29	19	16	2	12	4	7	236 ^[A]

Average weekly earnings	No. of women with average weekly cost of living (food, shelter, heat, light, laundry)													
	Un-der	\$1.00 to	\$1.50 to	\$2.00 to	\$2.50 to	\$3.00 to	\$3.50 to	\$4.00 to	\$4.50 to	\$5.00 to	\$5.50 to	\$6.00 to	\$6.50 and over	Total
	\$1.00	\$1.49	\$1.99	\$2.49	\$2.99	\$3.49	\$3.99	\$4.49	\$4.99	\$5.49	\$5.99	\$6.49	over	
10.50: 10.99	..	..	..	..	..	..	..	..	1	..	..	..	..	1
11.00: 11.49	..	..	1	..	..	..	..	..	..	..	1	..	1	3
11.50: 11.99	..	..	..	..	..	1	..	..	..	1	..	..	..	2
12.00: 12.99	..	..	..	..	..	1	..	..	2	..	1	1	..	5
13.00: 13.99	..	..	..	..	..	..	1	..	..	..	..	..	..	1
14.00: 14.99	..	..	..	..	1	..	..	..	..	..	1	..	..	2
15.00 & over	..	..	..	..	..	..	1	..	..	..	..	..	1	2
Total	7	17	29	32	26	36	29	19	16	2	12	4	7	236 ^[A]

[A] 16.6% of those for whom the information necessary was secured. In the cities investigated (New York, Chicago, Philadelphia, St. Louis, Boston, Minneapolis, and St. Paul) there were, in 1905, 400,000 women employed in stores, mills, factories, and other similar establishments.

**NUMBER OF WOMEN WAGE-EARNERS KEEPING HOUSE WHO
HAVE SPECIFIED
NUMBER OF PERSONS WHOLLY OR PARTIALLY DEPENDENT
ON THEM FOR SUPPORT, BY WAGE GROUPS**

Average Weekly Earnings	No. of women having wholly dependent on them					No. of women having partially dependent on them				
	1 person	2 persons	3 persons	4 persons	Tot.	1 person	2 persons	3 persons	4 persons	Tot.
\$ 1.00: \$ 1.49	..	..	..	..	..	..	..	..	..	..
1.50: 1.99	..	..	..	..	..	..	..	..	..	..
2.00: 2.49	..	..	..	1	1	1	3	..	..	4
2.50: 2.99	..	..	..	..	..	1	..	1	..	2
3.00: 3.49	1	..	1	..	2	2	1	..	..	3
3.50: 3.99	1	..	..	..	1	1	2	..	1	4
4.00: 4.49	2	..	1	..	3	2	3	3	1	9
4.50: 4.99	1	..	2	2	5	4	2	3	2	11
5.00: 5.49	..	..	1	1	2	7	1	..	2	10
5.50: 5.99	2	1	..	..	3	4	1	..	..	5
6.00: 6.49	..	1	1	..	2	5	3	1	1	10
6.50: 6.99	..	..	..	..	..	4	1	1	..	6
Total	24	8	10	4	46	54	21	15	11	101

Average Weekly Earnings	No. of women having wholly dependent on them					No. of women having partially dependent on them				
	1 person	2 persons	3 persons	4 persons	Tot.	1 person	2 persons	3 persons	4 persons	Tot.
7.00: 7.49	3	1	..	..	4	1	1	..	1	3
7.50: 7.99	..	3	2	..	5	10	..	..	1	11
8.00: 8.49	6	..	1	..	7	4	..	2	1	7
8.50: 8.99	2	1	..	..	3	2	..	..	..	2
9.00: 9.49	..	..	..	..	..	2	2	1	..	5
9.50: 9.99	1	..	..	..	1	..	..	1	..	1
10.00: 10.49	..	..	..	..	..	2	..	..	..	2
10.50: 10.99	..	1	..	..	1	..	..	..	..	..
11.00: 11.49	1	..	..	..	1	1	..	..	1	2
11.50: 11.99	1	..	..	..	1	..	..	1	..	1
12.00: 12.99	1	..	..	..	1	1	..	1	..	2
13.00: 13.99	..	..	..	..	..	..	..	..	..	..
14.00: 14.99	1	..	..	..	1	..	..	..	..	..
15.00: over	1	..	1	..	2	..	1	..	..	1
Total	24	8	10	4	46	54	21	15	11	101

But bad food and bad housing are not the only enemies of the workman's health. The nature of his daily toil and the conditions under which it is performed are often against him. Even ventilation becomes important when one has to spend ten, eleven, or twelve hours a day in one room, and yet this is almost entirely neglected.

In 1908 a special officer was appointed in New York State to make tests of the atmospheric conditions in places of business. One hundred and thirty-six factories were

examined, and in some printing establishments as many as forty parts of carbonic-acid gas (CO₂) in ten thousand volumes of air were found, though a legal limit of twelve is recommended. One cigar factory, with windows partly open, had eighty such parts. The following table will exhibit the results of this investigation.^[66]

Parts of CO ₂ in 10,000 vols. air	5-12	13-20	21-25	26-30	31-40	42-60	65-70	75-80
Factories in each class	82	166	80	67	30	8	3	3

Sometimes the exigencies of the trade require that there should be no draft, as in the handling of carbon filaments for incandescent lamps, and then the conditions of the atmosphere become acutely unhealthy. In addition, in some of the rooms numerous bunsen burners are always lighted and all currents of air carefully excluded to prevent their flickering.^[67]

Elsewhere, the process of manufacture often vitiates the air, as the "blow-over" in bottle shops. "In some factories, at times the air is so full of this floating glass that the hair is whitened by merely passing through the room. It sticks to the perspiration on the face and arms of the boys and men and becomes a source of considerable irritation. Getting into the eyes it is especially troublesome" (l. c., p. 66). Something similar occurs in etching glass by a sand-blast. Unless a hood and exhaust are provided, a pressure of from fifty to ninety pounds scatters fine sand and glass dust through the air and is breathed in by the operator (l. c., p. 440). Even worse, however, is the acid etching, as the fumes of hydrochloric acid cause severe irritation to the throat and lungs (l. c., p. 442).

Even when there is no such irritant in the air as just mentioned, extreme differences in temperature between the work-room and the outside, or between various parts of the shop, may be a source of serious danger to health. In the glass industry, many persons have to work in temperatures ranging from ninety to one hundred and forty degrees, and as high as fifty degrees above the outside air (l. c., p. 75). Industries where an artificial humidity is required, such as silk, cotton and flax spinning, are likely to induce rheumatism, pleurisy, etc. After working ten hours in a room filled with live steam to prevent breaking of threads, to pass into a New England blizzard is apt to produce serious results. The boys in bottle-making shops are obliged to pass continually from a temperature of 140 degrees at the "glory-hole" to one of 90 degrees or less in other parts (l. c., pp. 49ff.).

And even if conditions of atmosphere and ventilation are good, the mere fact of continuing work for thirteen hours seven days a week tells seriously upon the physical endurance of the strongest.^[68] When night work is required in addition to the day's labor, as in the glass industry, the consequences are likely to be worse, especially where children are concerned.^[69] Night work frequently means a presence in the factory of at

least twenty hours out of the twenty-four. "During the course of the investigation there were found two cases of recent death, both children, which could be directly attributed to exhaustion due to double-shift work in the furnace room" (l. c., p. 122).

In the clothing trade, "some piece and task-workers reported that they commonly worked seventy-two and even seventy-eight hours a week during busy periods" (l. c., p. 115). "There were instances where women said they worked from 6 or 7 o'clock in the morning to 9, 10, or 11 o'clock at night" (l. c., p. 241). For store girls, "thirteen and one-half hours on Saturday is not only excessive but works considerable hardship."^[70] "One girl worked 24½ hours at one stretch with but two half-hour intermissions for meals.... Four girls working in one establishment on the 'night force' one day for each week reported their 'longest day's' labor as 16¾, 20¼, 22½, 24¼ hours" (l. c., p. 205). On the elevated railways in Chicago, at the time of the investigation, 1907-08, women worked for 80½ hours a week (l. c., p. 208).

When the business requires the maintaining of practically one position all day, whether standing or sitting, such long hours are bound to have a bad physical effect. This is the case, for example, in department stores (l. c., p. 178); in the glass industry where many growing boys are cramped before the furnace holes all day long;^[71] in many processes in the manufacture of incandescent lamps (l. c., p. 482-483); and numerous other occupations.

But there is frequently added to mere length of hours a feverish haste in working induced by starvation piece-rates or by the necessity of keeping up with a machine. When a woman perforates 3100 bulbs a day and welds tubes to them, there must be a constant nervous tension to attain such rapidity (l. c., p. 469). The even more complex operation of stem-making for these bulbs proceeds at a rate varying from 2600 to 3500 a day (l. c., p. 467). Three thousand stems and bulbs are assembled each day (p. 470), while in one day, an expert will test the candle-power of 5000 lamps (p. 472). The operation of mounting Tungsten filaments in small copper wire is very much like threading an exceedingly small needle. If one imagines this repeated 3000 times a day, with thread that has to be handled with the greatest care to prevent breaking, he will have some idea of the strain on eyes and nerves (p. 478). Twenty thousand completed lamps are tested daily at a piece rate of 6c. per thousand lamps (pp. 486-487).

Very frequently, too, these long hours at an intense strain must be spent at work positively dangerous on account of the process, such as matchmaking^[72] or painting lamps.^[73] Chemical poisoning is frequent in hatters' and furriers' work, and plumbism, which is very similar to phosphorous poisoning, besets any trade in which lead is used. This is the case, in the production of white, red, or yellow lead, industries in which goods dyed with them undergo the process of building, winding, weaving, etc., and such an apparently innocuous occupation as the manufacture of earthenware and pottery. "One of the first symptoms of plumbism is a blue gum, followed by loosening and dropping out of the teeth. Blindness, paralysis, and death in convulsions frequently

follow. Besides plumbism there are serious indirect results from lead-poisoning in a number of industries."^[24] Readers of George Bernard Shaw will remember that Mrs. Warren adopted her profession through fear of contracting this disease. Her sister had fallen a victim to it and the frightful ravages made among her friends drove her to this course. In other industries such as wool sorting, blanket stoving and tentering, and warp dressing, lock-jaw is an incident.

Closely allied to a question already discussed, that of ventilations, is the insidious injury wrought by dust in the air. Some trades in which this condition is pronounced, seem materially to shorten life, as shown by a bulletin of the United States Bureau of Labor for May, 1909, on "Mortality from Consumption in Certain Occupations." The proportion of those reaching the age of 65 and over among tobacco and cigar factory operatives was 1.8%; glove-makers, 2.3%; bakers, 2.4%; leather curriers and tanners, 2.9%; and confectioners, 3.1%: as against 4.7%, the average expected normal on the basis of all occupied males in the United States (l. c., p. 623).

Eighty-nine per cent. of the clergymen who died in 1900 were over 44, and 55% over 65 years of age; 76% of the lawyers dying in this year were over 44, and 41% over 65; 73% and 41% of the physicians had passed these respective ages; 80% and 37% of the bankers, officials of companies, etc., were over 44 and 65: yet more than half of the compositors dying in the United States for the year were under 49 years of age. About one-half of these died of pulmonary tuberculosis. Only 18% were over 60.^[25] Between 1892 and 1898, 32% of the deaths of glass bottle-blowers were due to tuberculosis, largely induced, probably, by the strain on the lungs, the "blow-over," and conditions of temperature.^[26]

Industrial mortality insurance statistics show that 23% of the deaths of those employed in trades exposed to organic dust are from consumption and 14% from other respiratory diseases, as against 14.8% and 11.7%, the expected respective averages for the United States.^[27] The following table taken from the bulletin just quoted will probably exhibit the results more strikingly (p. 626):

Age at death	Per cent. of deaths due to consumption among:	
	Occupations exposed to organic dust	Males in registration area, 1900-1906
15-24 years	40.1	27.8
25-34 years	49.0	31.3
35-44 years	35.3	23.6
45-54 years	21.6	15.0
55-64 years	11.0	8.1
65 and over	4.5	2.7

It will be seen from this table, that deaths from consumption in these trades exposed to organic dust were more than half again as much as might reasonably have been expected. And it must be remembered that statistics indicate, "that general organic dust is less serious in its fatal effects than mineral or metallic dust, and as a result the proportionate mortality from consumption and other respiratory diseases in this group is more favorable than in the groups of occupations with exposure to mineral and metallic dusts" (l. c., p. 627).

More evident dangers of occupation, because more directly traceable to their causes, are industrial accidents. Manufacturers and employers sometimes wantonly, sometimes through ignorance, neglect the precautions and appliances necessary properly to safeguard their workmen. The introduction of complicated machinery, the use of high-power explosives, the strenuous conduct of production, without corresponding efforts to offset the natural tendencies of these conditions and tools, has made peace more horrible and dangerous than war.

Of all such sources of accident, mines are probably the most prolific. "The percentage of miners killed in this country is greater than in any other, being from two to four times as large as in any European country."^[78] "Every year of the past decade," 1890-1900, "has seen from 500 to 700 Pennsylvania miners killed and from 1200 to 1650 injured. By comparing these figures with the total number employed, it will be found that on the average about one man in every 400 employed in the mines is killed yearly and about one out of every 150 injured."^[79]

In 37 New England cotton mills in 1907, 1428 employees were injured.^[80] The Bethlehem Steel Works alone had a record of 927 accidents in 1909.^[81] In New York State, during a year of industrial depression, 1907, there were 14,545 accidents recorded,^[82] and we know that they are more numerous in prosperous years.

Time and again we find in the succinct official reports such terse statements as: "While working on top of boiler was overcome by gas: dead when found," "struck by pieces thrown from bursting emery wheel, died from injuries ten days later," "heavy piece of machinery was being moved by crane which broke, allowing machinery to fall against tank, which in turn fell against deceased, crushing his legs and injuring him internally: death occurred one hour later," "caught in belt and whirled around shafting; death occurred before machinery could be stopped," "struck in face by broken belt; eyeball broken: death ensued two days later at hospital from effects of anæsthetic," "broken elevator shaft caused elevator to fall with operator; skull fractured and ear lacerated: death ensued later at hospital" (l. c., pt. I, pp. 109-113).

Such are the official reports. They give no idea of the suffering of the families, the struggles of widows and orphans when the head of the family has been struck down; they do not show the carelessness or greed that subjects men to the danger of working with worn-out cranes, or defective emery wheels, or weak belting; but they do show, in connection with the other data quoted, in a cold official way, that hundreds of

thousands of men and women in this country are working for excessive hours, amid unsanitary surroundings, and without proper protection from the dangers of their work: judging by the standard which for the time being has been accepted as just.

Such conditions are hard enough for grown men and women to face, they are harder still for children. And by taking children away from school and putting them at work, frequently beyond their capacity, they are handicapped mentally and physically for making enough later on to support a family. The percentage of children so injured cannot be definitely arrived at, but they are employed in considerable numbers in a large variety of occupations. Sweatshops, glass factories, the making of neckties, cigars, paper and wooden boxes, picture frames, furniture, and shoes are a few of the widely different trades that take their quota. In the Southern cotton mills, twelve appears to be the age at which children are ordinarily expected to begin work; but some of the mills employ children under that age, now and then, in fact, as young as nine, eight, and even six years. ^[83]

"Probably the most serious and far-reaching effect of child-labor is the prevention of normal development, physical and mental. Besides being deprived of the schooling they would otherwise get, children are injured by confinement and sometimes worn out by work. In other cases the work is demoralizing because it does not call out the best faculties of the children, or leaves them altogether idle for a part of the year.

"It has been found that children are much more liable to accidents in factories than adults. Thus a recent report of the Minnesota Bureau of Labor shows that boys under sixteen have twice as great probability of accident as adults, while girls under sixteen have thirty-three *[sic]* times as great a probability of being hurt as women over sixteen.... It has also been found that overstrain of the muscular or nervous system is much more serious in children than in adults, and that children are also more susceptible to the poisons and injurious dusts arising in certain processes than grown persons." ^[84]

FOOTNOTES:

^[63] U. S. Bureau of Labor, "Men's Ready-Made Clothing," p. 297.

^[64] U. S. Bureau of Labor, "Glass Industry," p. 607.

^[65] U. S. Bureau of Labor, "Wage-Earning Women in Stores and Factories," p. 134.

^[66] Cf. Report of Commissioner of Labor of New York for 1908 Vol. I, pp. 76-93.

^[67] U. S. Bureau of Labor, "Glass Industry," p. 500.

^[68] U. S. Commissioner of Labor, "Strike at Bethlehem Steel Works," p. 10, 1910.

^[69] U. S. Bur. Lab., "Glass Industry," p. 118.

^[70] U. S. Bur. Lab., "Women Wage-Earners in Stores and Factories," p. 127.

- [71] U. S. Bur. Lab., "Glass Industry," p. 48.
- [72] U. S. Bur. Lab., Bulletin No. 68, Jan., 1910: "Phosphorus Poisoning in the Match Industry."
- [73] U. S. Bur. Lab., "Glass Industry," pp. 485-486.
- [74] U. S. Indus. Comm., Vol. XIX, p. 901f.
- [75] Rep. N. Y. State Bur. Lab., 1906, pp. CVII-CXXXV.
- [76] U. S. Bur. Lab., "Glass Industry," p. 240.
- [77] Bull. U. S. Bur. Lab., May, 1909, p. 626.
- [78] "Monthly Catalogue U. S. Public Documents," Nov., 1909, p. 184.
- [79] U. S. Indus. Com., Vol. XIX, p. 906.
- [80] U. S. Bur. Lab., "Cotton Textile Industry," p. 383.
- [81] U. S. Commissioner of Labor, "Report on Strike at Bethlehem Steel Works," p. 121.
- [82] Report of Commissioner of Labor of N. Y., 1908, pt. I, p. 62.
- [83] L. c., pp. 45, 65, 83, 85, 86: U. S. Bur. Lab., "Cotton Textile Industry."
- [84] U. S. Industrial Commission, Vol. XIX, p. 917f; cf. also U. S. Bur. Lab., "Cotton Textile Industry," p. 385f.
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CHAPTER SEVEN

INDUSTRIAL CONDITIONS: MORALS

Industrial conditions, as at present constituted, not only injure the health of the body; they also endanger the soul. The Chicago Vice Commission has thus summarized these influences: "Among the economic conditions contributory to the social evil are low wages, unsanitary conditions, demoralizing relationships in stores, shops, domestic service, restaurants and hotels: the street vending of children in selling papers and gums, collecting coupons and refuse; the messenger service of boys, especially in the vicinity of disorderly houses, vicious saloons, dance halls and other demoralizing resorts; employment agencies which send servants to immoral places; the rest rooms or waiting places where applicants for work resort; too long hours and the high pressure of work; the overcrowding of houses upon lots, and of persons in single rooms" (Report, 1911: p. 230).

When inability to secure decent lodging forces men and women to occupy the same sleeping rooms, there must be an inevitable lowering of moral standards. One case is recorded in "Packingtown," where eight persons—men and women—were sleeping in a room approximately ten by fifteen feet.^[85] When a woman pays less than \$1.50 a week for board and lodging, as many are forced to do (see page 71f) she can have no privacy. "If there are men lodgers in the house, the entrance to their room is sometimes through the girl's room, or vice versa. In one house visited, the women received the agent about nine P.M. in the room of a man lodger who had already gone to bed. This seemed to be the only available sitting room and disconcerted no one save the agent" (l. c., p. 62).

The girl who lives away from home in a cheap boarding house is no myth. In Pittsburgh, "in the garment trades she numbers 38% of the total force; in the wholesale millinery trade 10%; in the mercantile houses 20%. On the lowest estimate, there are 2300 of her kind in Pittsburgh."^[86]

It is not only low wages, as leading to a lack of decent housing, that has a bad moral effect. All are born with a natural craving for happiness, and long hours of work under a nervous strain intensify this desire. Economic conditions have kept most of those in the grip of such a situation from developing the higher side of their nature until they can find pleasure and recreation in a symphony concert or an epic poem. The jaded nerves need a stronger stimulus to cause pleasure. "The desire for ecstasy," says Algar Thorold, a keen psychological observer, "is at the very root and heart of our nature. This craving, when bound down by the animal instincts, meets us on every side in those hateful contortions of the social organism called the dram-shop and the brothel."^[87]

As a consequence of this insatiable longing for pleasure and the inability to pay for it, thousands of young women in our big cities patronize public dance halls and other questionable places of amusement. The code of their social set has come to sanction accepting tickets for such places, refreshments, etc., from men met haphazard at these resorts.^[88]

Dance halls are such a serious menace to public morals that legislation has become necessary. Elizabeth, Paterson, Newark and Hoboken, New Jersey, Boston, Philadelphia, St. Louis, Indianapolis, Louisville, Minneapolis, Seattle, San Francisco, Kansas City, and Cleveland are all agitating the question of their regulation (Survey, June 3, 1911, p. 345). A. B. Williams, general secretary of the Humane Society of this last city, is quoted as declaring that "one out of every ten children in Cleveland is born out of wedlock. In nine out of every ten cases that we handle, the mothers tell us, 'I met him at a public dance'" (l. c., p. 346).

In Chicago alone there are about 306 licensed dance halls and nearly 100 unlicensed. Among these, "one condition is general: most of the dance halls exist for the sale of liquor, not for the purpose of dancing, which is only of secondary importance. A saloon opened into each of 190 halls, and liquor was sold in 240 out of 328. In the others—except in rare instances—return checks were given to facilitate the use of neighboring saloons. At the halls where liquor was sold practically all the boys showed signs of intoxication by one o'clock" (l. c., p. 385: Louise de Koven Bowen).

And just as women who have toiled hard all day long, crave some strong excitement such as can only be afforded by the dance hall or a similar place, so men in the same circumstances naturally turn to the saloon. It is in the cheerfully lighted, comfortably heated gin-shop, in the temporary stimulus of liquor, that insufficient food, unhealthful surroundings at home and at work, a cold, uninviting house are forgotten. It is often said that workmen would have enough to live on comfortably if they did not squander their wages in drink, and that to raise their pay would only be to increase the profits of saloon-keepers. In some cases this may be true. But in the vast majority, it is probable that to increase their power of getting the comforts at home that they find in the saloon would be to lessen the drink evil, rather than increase it. The marvel is not that laborers who come home day after day from hard, long toil to poor food, cold rooms, a generally comfortless home should seek out the gin-palace, but that they drink as little as they do.

These are some of the indirect, though important, moral results of economic conditions. Oftentimes the direct influences of a person's occupation also make for evil. The messenger boy, for instance, on the streets at all hours and in all sections, can hardly fail to see and hear much that no parent would want a child of fourteen, sixteen, or eighteen to know. Indeed, a great part of his employment at night comes from those indulging in debauchery, and it is his most profitable source of tips.^[89]

From the nature of the case, women are probably more exposed in their work than men. Such occupations as will occur to every one, are manicure parlors where girls are peculiarly exposed to danger and insults. But most important, because employing the largest numbers, are the department stores. It has been charged over and over again, that many employers knowingly pay wages that are insufficient to support a girl in the expectation that she will be subsidized by some "gentleman friend."

How far this is true is hard to say; and it is just as difficult to determine how many department-store employees are really immoral. The report of the United States Bureau of Labor on "Wage-Earning Women and Children" combats the idea that immorality among them is widespread. Nevertheless, there is a strong opinion that store girls are not all they should be, and many careful observers have enumerated quite a startling array of individual instances where a girl's fall can be largely traced to her employment as a sales-woman.

An investigator for the Chicago Vice Commission, for instance, gives in the report of that body quite a number of cases which are said to be typical. "Violet works in a department store, salary \$5.00 per week. Was seduced and left home. Baby died and she solicits on the side to support herself.... Mag 18 years old. Works in department store. Salary \$5.50 per week. Tells parents she receives more. Helps support parents and 'solicits' at dances for spending money. Father is sickly.... Marcella (X913), alias Tantine (X904). Came to (X905) about three years ago, and started to work in the (X916) department store. One of the managers insisted on taking her out, which she finally had to do 'to hold her job,' as she asserts" (pp. 187, 195).

Miss Elizabeth Butler, investigating for the Pittsburgh *Survey*, reports the same thing in that city. "Vera ——" she says, "is twenty years old. Four years ago she was employed as a salesgirl at \$3.50 a week. After a year she left for another store where she was employed as a cashier at a salary of \$10.00 a week, for making concessions to her employer. After two years she left the store for a house of prostitution.... Jennie —— came to Pittsburgh from Akron, Ohio. She had no friends in the city and was obliged to be self-supporting. She obtained a position at \$6.00 a week as a sales-woman. After five months in the store she consented to be kept in an apartment in the East End. She still keeps her position in the store.... A girl whose father was killed by an electric crane was the only one of the family old enough to work. Forced by financial needs to accept a wage fixed by custom at a point below her own cost of subsistence, much more below the cost of helping to maintain a family of dependents, she drifted into occasional prostitution."^[90]

These are only particular instances, it is true, and one must not generalize too widely. But there is undoubtedly considerable foundation for the charge so often made and so firmly fixed in the public mind. And if many of the girls exposed to such dangers have hitherto remained pure, we must thank the sterling characters inherited from those raised under different conditions, not conclude that the system needs no improvement.

All these and certain less tangible economic influences making for evil have been well summarized by the Minneapolis Vice Commission. It points out that the advent of great numbers of young girls into industry has produced conditions that lead to the blasting of thousands of lives yearly. "The chance for the making of promiscuous male acquaintances, the close association of the sexes in employment, the necessary contact with the general public, the new and distorted view of life which such an environment compels, taken with the low wage scale prevailing in so many callings and affecting so many individuals, combine to create a situation that must inevitably weaken the moral stamina and lead to the undoing of many. The fault is plainly not so much in the individual; it is rather the results of the industrial system. The remedy lies in large part in the reforming of the system" (Report, 1911, p. 126).

Some of the remedies suggested by this commission are higher wages, better sanitary conditions, and "*the education of public opinion in this field to the point where it will demand a living wage and proper working conditions and social conditions for those who serve them in industry.*"^[91]

Nor is this commission alone in attributing a great moral influence to economic conditions and in looking to the public for a large part of the remedy. In fact, it was simply following in the steps of the New York and Chicago Vice Commissions.^[92] And all merely voiced a widespread conviction among social workers and the public generally.

"Are flesh and blood so cheap," asks the Chicago Commission, "mental qualifications so common, and honesty of so little value, that the manager of one of our big department stores feels justified in paying a high school girl, who has served nearly one year as an inspector of sales, the beggarly wage of \$4.00 per week? What is the natural result of such an industrial condition? Dishonesty and immorality, not from choice, but necessity—in order to *live*. We can forgive the human frailty that yields to temptation under such conditions—but we cannot forgive the soulless corporation, which arrests and prosecutes this girl—a first offender—when she takes some little articles for personal adornment.... Prostitution demands *youth* for its perpetration. On the public rests the mighty responsibility of seeing to it that the demand is not supplied through the breaking down of the early education of the young girl or her exploitation in the business world" (Report, pp. 43-44).

This insistence upon the *public* as being really responsible for these economic and moral conditions is significant. For the Consumers are the public. Each individual of which the public is composed is, in one aspect, a Consumer, and it is important to notice how widespread is an insistence upon his responsibility in the matter.

From this discussion it may be reasonably concluded: (1) that many persons in many industries are receiving less than a living wage, in the present acceptance of that term; (2) that many persons are being injured in health and limb by long hours, unsanitary

workshops, and improperly guarded machinery; (3) that the conditions of work often tend to produce vice.

The treatment has been largely statistical. No matter how thorough, therefore, it is subject to the limitations of this method. Sissy Jupe long ago called statistics "stutterings," and newer editions of *Gradgrind* have not perfected their articulation. Statistics are necessarily quantitative. They do well enough for computing rainfall, or something of the sort, but human life with its pleasures and pains, its joys and tragedies, refuses to be labeled and ticketed. It is intangible to such gross systems of classification.

"All the world's coarse thumb
And finger fail to plumb"

the depths of happiness and suffering in the least of human creatures.

FOOTNOTES:

[85] U. S. Bur. Lab., "Women Wage-Earners in Stores and Factories," p. 119.

[86] E. B. Butler, "Women and the Trades," pp. 320-1.

[87] Preface to "Dialogue of St Catherine of Siena," p. 13: London, Kegan Paul, 1896.

[88] U. S. Bur. Labor, "Women Wage-Earners in Stores and Factories," p. 75.

[89] Cf. Report of Chicago Vice Commission, p. 242f, and unpublished reports of the National Child Labor Committee, Washington, D. C.

[90] "Women and the Trades," pp. 305-306, 348.

[91] Italics added. Cf. pp. 114, 115, 126.

[92] Survey, Apr. 15, 1911, p. 99; May 6, 1911, p. 215.

CHAPTER EIGHT

WHAT SHOULD THE INDIVIDUAL CONSUMER DO?

The question now arises, even supposing the conditions are bad and that a duty of improving them rests upon the Consuming Class; what is the individual Consumer bound to do? Making all due allowances for the fact that we have assumed what is a just or unjust wage, and without any intention of forcing this standard upon the conscience of individuals, there will be times when a particular Consumer is convinced, e.g. that those employed at stores he patronizes are not being paid anything like what they have a right to receive. What should he do? Does any obligation devolve upon him?

In answering this question, the general principle must be kept in mind, that a Consumer is not bound to act under a disproportionately grave inconvenience. He is not bound to sacrifice considerable personal good to do a very little good to the laborers making the articles he buys; nor is he obliged to put himself to any inconvenience if no good whatever is going to follow.

But if he can conveniently buy goods made under just conditions rather than under bad, and the price is no higher, then he is bound to do so. And if he is well off and can easily afford to pay a little more for the justly made goods, he ought to buy them, provided he can be reasonably sure that the increase in price will go to maintain good working conditions and not simply to swell the manufacturer's profits.

As Father Cuthbert, a Capuchin, says, not the employers only are responsible for the oppression of workingmen, "but all who patronize such labor contribute to the sin. The insatiable yearning to buy cheap without any thought as to how cheapness is obtained, this is the incentive which tempts men to buy cheap labor and to underpay workmen. Were people in general not willing accomplices, there would be no sweating system, no unfair competition. The sin falls not on the few [manufacturers] but on the many [patrons] who too readily condone the sin of the few for the sake of the resultant advantage to themselves. They pay half a penny less for a pound of sugar or a shilling or two less on a ton of coal: what does the public care that the shop assistant or the miner is unable to get a human wage?"^[93]

The purely individual action of Consumers, however, can have but little effect for good. For only comparatively few have sufficiently developed social consciences to realize the desirability of such action; and even if more had, their means of discovering which goods are justly made are so limited as seriously to hamper their activity.

The remedy for this difficulty would seem to be organization among Consumers. There can be little doubt that if they united in sufficient numbers in patronizing only those shops that maintained good working conditions their action would exert considerable pressure. The labor unions have shown that the boycott is a powerful weapon. How efficient it can be, may be guessed from the sums spent by employers in opposing it. Astute business men do not tilt at windmills, and if they have fought the legality of the boycott in every tribunal in the land, including the Supreme Court, it was only because they realized the compelling power it placed in labor's hands.

But some greater animus than pure philanthropy seems necessary to make Consumers band together in this way on a large enough scale. They need the class spirit, the enthusiasm of industrial warfare afforded by the trade unions. For though an organization of Consumers has been in existence now for more than twenty years, it is forced sorrowfully to admit that the good accomplished simply through the economic pressure of its members has been but slight.

But if it had been possible so to unite Consumers in a powerful society for the collection of information and the distribution of patronage, it has been asked: Would it not have become wofully corrupt? Can we safely trust an irresponsible club with such power? And, therefore, is it wise for conscientious individuals now to join this league? For either it will remain practically powerless, or else it will become so strong as to be a menace.

The answer must be that if the Consumers' League ever does become strong enough to exercise a great influence in the industrial world, it will probably abuse and sell its power. Rich unfair firms may be able to bribe those in control to give them a recommendation they do not deserve, and various other kinds of corruption will most likely creep in. But such an argument proves too much. If we are to give no authority where it will not be misused, we shall come to anarchy at once. For have not political parties, and states and employers and trade unions—all, at one time or another, abused power. Seldom have men enjoyed power for long without using it for selfish ends.

But we must not, therefore, destroy all authority and power. Rather we should embrace the dictum of de Maistre, that power must be balanced against power, one organization set to watch another. And if it should happen that a league of Consumers became too strong and abused its strength, it would be time enough then to set about checking it by building up power somewhere else.

So far, however, there has been no danger of such a contingency. The Consumers' League has been active, earnest, and honest—and sufficient for the day is the evil thereof. The League has embraced all work that came to hand whether strictly within the economic field first marked out for it, or extending to other preserves. Its activity in the Legislative domain has not been inconsiderable, and it is probable that the influence of Consumers will be most marked here in the future.

There is much talk now of minimum wage legislation to guarantee laborers a certain standard. If we look upon compulsory arbitration as practically the same thing, we can say that it has already been extensively tried. Canada, England, Australia, and New Zealand have shown that it is possible in some fields but the controversy always aroused by a new project has not yet subsided sufficiently to enable one to speak definitely concerning its success. The elaborate system of state insurance against sickness, accident, old age, and unemployment, now in operation in England and Germany is another governmental attempt to secure a certain standard of living for all. And the public-schools, in which rich and poor are put on a plane of equality regarding elementary education, are so familiar that we are apt to lose sight of the fact that they are really only one link in this chain of state intervention to provide the means for everybody enjoying certain advantages that have come to be looked upon as necessities in our civilization.

In our own country during 1911, there was much discussion, some action, and every prospect for still further activity along these lines. A conspicuous feature was the movement to introduce a more equitable system of compensation or insurance for industrial accidents.^[94] There was a non-compulsory minimum wage law passed recently in Massachusetts, and several States prescribed the rate of pay for public work done by contract. An amendment to the Charter of San Francisco fixes the minimum of employees on street railways at \$3.00 per day, with one and one-half pay for overtime. Vermont, Wisconsin and South Dakota have given wages a preference over other debts (l. c., pp. 876, 878, 881).

It would seem then that the legislative field is the one in which most success is to be expected. And since the Consumers are the beneficiaries of labor's exertion, they are especially bound to effort in this direction. Those who have influence and leisure are more bound than those who have but little power or opportunity, but all are obliged to do something.

The results of our examination of this question may be summed up in the following conclusion:

- I. Assuming that employers are violating the rights of their laborers then there is a duty incumbent upon the *Consuming Class* to do what they can to secure these rights.
- II. Employers are violating the rights of their employees to such an extent as to create a serious social problem.
- III. The individual Consumer is bound to do what he can without serious inconvenience to remedy these conditions. He can act individually, by joining an organization, and through legislation.

Should it be asked which is the most effective way, the answer would certainly incline towards legislation. If we survey the industrial history of the last quarter century, we can see gain after gain by this method;^[95] while the Consumers' League, in its strict

capacity of an organization of *purchasers* has done but little. What it has accomplished has been largely through the advocacy of legislation, rather than by merely economic pressure. And so, while Consumers could doubtless effect tremendous changes if they wished, it seems impossible to get them to co-operate in sufficient numbers.

Nevertheless, the Consumers' League is founded on a great and noble principle, and for the moment I want to put aside the judicial attitude and enthusiastically chronicle what it has done, and what could be done along the same lines. The Consumers' League is unique in the field of philanthropy as affording an opportunity to everyone no matter how big or how little. For by its original principle of buying only goods made under fair conditions, it gives a chance to the unimportant individual to share in a great philanthropic movement, somewhat as a private does in an imperial army; and by its activity in the legislative field, it opens up an opportunity for those who have the time, and talent, and position necessary for effectiveness there.

And whether or not we look upon the dictates of charity and justice as clearly indicating a duty, whether or not one's "moral resonance" responds to what has been said, surely we cannot deny that here is a splendid opportunity. Here is a practical way for each and everyone to play the Good Samaritan. Not all of us can meet men along a road who have been set upon by thieves, bundle them into an automobile, and carry them to a hospital. We cannot all give thousands in charity. We cannot all engage in publicly urging reforms by legislation, nor give generously of time in philanthropic ministration to the poor. But we can see to it in the way already outlined that some at least of our expenditures go to ward off misery rather than foster it. We can see to it that we prevent misery from spreading at least in one little sphere.

[\[96\]](#) This is no mere theory. Reforms have actually been accomplished in some places by the Consumers' League. Realizing that to be effective they must be organized, it is the object of members of this League to act as a sort of inverted megaphone gathering up the weak whisperings of each individual purchaser and blending them with thousands of others until they all become one mighty concerted shout that must be heard.

Laborers have known the strength of combination in fighting industrial conditions for more than a generation; the aggregations of capital have been growing larger and larger; why should not the most powerful of all the elements of industrial society, the Consumer himself, learn by their experience?

Organized in 1891 in New York City, the Consumers' League now has almost a hundred branches in eighteen of the United States, in France, Switzerland, Germany, and Belgium. To Mrs. Josephine Shaw Lowell is due the credit of its inception. An investigation during 1889-90 into the conditions of work among sales-women and cash-children, which she directed for the Working Women's Society, forced upon her the futility of starting reform from the producing end. The competitive system of industry ties the hands of the employer, while it seems impossible successfully to

organize a union among women. There was but one element of the economic world left to work with—the Consumer.

Therefore, in May, 1890, a public meeting was called in Chickering Hall, New York, to discuss the organization of this all-powerful factor of industry. It was decided to found the Consumers' League upon the following platform:

"I. That the interest of the community demands that all workers should receive, not the lowest, but fair living wages.

"II. That the responsibility for some of the worst evils from which wage-earners suffer, rests with the Consumers, who persist in buying in the cheapest markets, regardless of how cheapness is brought about.

"III. That it is therefore, the duty of Consumers to find out under what conditions the articles they purchased are produced, and to insist that these conditions shall be, at least, decent and consistent with a respectable existence on the part of the workers.

"IV. That this duty is especially incumbent upon Consumers in relation to the product of women's work since there is no limit beyond which the wages of women may be pressed down, unless artificially maintained at a living rate by combinations, either of the workers themselves or of the Consumers."[\[97\]](#)

The first step taken to carry out these objects was to prepare a "white list" of stores coming up to a certain standard. Since it is illegal to boycott, or to urge persons not to deal with stores placed on a "Black List," the Consumers' League accomplishes the same results by persuading persons to buy from firms on a white list. Once published, merchants feel the effects of such a list, and, to get the patronage of the League, volunteer all the good points about themselves, not to mention the bad ones about their competitors. The list itself thus becomes an invaluable means of getting information not otherwise obtainable.

Necessarily this list had to be somewhat elastic and considerably below the ideal. The people at the head of the Consumers' League were practical persons of wide experience and they went on the principle that half a loaf is better than none at all—that every little bit helps. After consultations with the employers and the Working Women's Society, a standard was adopted from which no retreat has been made. Whatever changes have been made, have been on the side of greater strictness. To-day it stands as follows:

WAGES

A Fair House is one in which equal pay is given for work of equal value, irrespective of sex, and in which no sales-woman who is eighteen years or over—and who has had one year's experience as sales-woman receives less than six dollars a week.

In which wages are paid by the week.

In which the minimum wages for cash-children are three dollars and a half per week, with the same conditions regarding weekly payments.

HOURS

A Fair House is one in which the number of working hours constituting a normal working day does not exceed nine. At least three-quarters of an hour is given for luncheon. A general half-holiday is given on one day of each week during at least two summer months.

A Vacation of not less than one week is given with pay during the summer season.

All overtime is compensated for.

Wages are paid, and the premises closed for the seven principal legal holidays, viz., Thanksgiving Day, Christmas and New Year's Day, Washington's Birthday, the Fourth of July, Decoration Day, and Labor Day.

PHYSICAL CONDITIONS

A Fair House is one in which work, lunch and retiring rooms are apart from each other, and conform in all respects to the present Sanitary Laws.

In which the present law regarding the providing of seats for sales-women is observed, and the use of seats permitted.

OTHER CONDITIONS

A Fair House is one in which humane and considerate behavior towards the employees is the rule.

In which fidelity and length of service meet with the consideration which is their due.

In which no children under fourteen years of age are employed.

In which no child under the age of sixteen years works for more than nine hours a day.

In which no child works, unless an employment certificate issued by the Board of Health has been first filed with the employer, and the name, etc., of the child has been entered on a register kept by the employer.

In which the ordinances of the city and the laws of the State are obeyed in all particulars.

When it is remembered that in 1891 only eight stores in New York were eligible for the standard (then less strict), while to-day there are more than fifty; that then overtime was never paid for, and fines often reduced the pay to almost half, while to-day fines go to a

benefit fund, and overtime is paid for, or a corresponding time off is given; that then the child-labor law was openly violated, and many grown women received less than four dollars-and-a-half, sometimes less than two dollars, a week, while the standard now is six; that the chair law, providing one seat for every three girls, was disregarded, or the girls never allowed to use them, while to-day inspectors of the State Labor Bureau strictly enforce its regulations; that the year after the influence of the Consumers' League passed the Mercantile Employers' Bill providing for the essentials of the above standard, there were twelve hundred infractions reported, and nine hundred under-age children released from drudgery as shipping clerks, etc.: when this advance towards a decent standard of living, and the considerable part of the Consumers' League in bringing it about, is kept in mind, the power of the purchaser is seen to be no day-dream of an idealist, no mere pretty theory of an arm chair economist.

As one reform after another was accomplished, the League turned itself to new labors. To-day it is agitating strongly against the cruelties of such seasons as Christmas, that should mean peace and joy to all. "Glad tidings of great joy" sounds like a hollow mockery to the sales-women and children who work from eight in the morning until midnight. Therefore the League sends out thousands of post-cards, and advertises in newspapers, magazines, and street-cars, urging persons to shop early out of consideration for the employees of stores. The first large success from this movement came in 1910 when the leading department stores of Philadelphia, employing 35,000 persons, decided to close at six o'clock during the entire Christmas season. Late on the evening of December 1, the head of one of the largest retail firms in the city called up the Consumers' League to say that he had good news. "I thought that you should certainly be the first to hear that we are going to close early," he said. "I congratulate you and the women you represent on what you have enabled us to do."^[98]

All this activity, however, is concerned with the retailer; in the meantime manufacture was not neglected. The League early saw the evils prevailing in many factories, and therefore decided to carry the white-list idea under a slightly different form into this field. After a thorough investigation by its own representatives and consultation with the State factory inspectors, the League, where the situation is satisfactory, allows the use of its label guaranteeing that the goods are made under clean and healthful surroundings. The conditions under which the label is issued are:

1. The State factory law is obeyed.
2. No children under the age of sixteen are employed.
3. Work at night is not required, and the working day does not exceed ten hours.
4. No goods are given out to be made away from the factory.

Similar to the Consumers' League label are the labels of various trade unions. These latter, indeed, were in the field many years before the Consumers' League was even

organized. They are based upon exactly the same principle. When a factory maintains the conditions demanded by the union, it is allowed to use the label on its goods. Anyone, therefore, who buys union-made goods at a store where the employees are protected by the retail-clerks union can be sure that those engaged in both the production and distribution of these articles have obtained their just rights so far as this is possible.

By having firms on the white list handle labeled goods and, recently, by establishing a store of its own in New York, a market is created for them among the members of the League. The practicalness underlying the whole management of the League is very clearly shown here both in the dove-tailing of its activities in manufacture and distribution and in the appeal made to the self-interest of purchasers to buy white goods, wrappers, etc., made in clean factories rather than germ-carrying sweatshops goods. It has been the aim of the League all along to make it to the Consumer's personal advantage to buy labeled goods at white-list stores. The idea is to give him a better article and better service for the same money, the increased cost to the manufacturer and retailer to come out of the increased sales.

In 1898 the various local Leagues that had sprung up in different sections were united into one national organization and the activities became even more important. The sweatshop, child-labor, excessive hours for women, were attacked with considerable effect. In many States the public conscience was sufficiently aroused by reform agencies with which the League zealously co-operated to pass stringent laws, and the League's representatives, either as private individuals or as honorary inspectors of the State tried to see that they were carried out. If New York to-day has the strictest child-labor law in the United States, a good share of the honor is due to the untiring labors of an enlightened Consumers' League.

Here one concrete instance of these activities must suffice. England had as early as 1844 enacted laws protecting women, but, owing to the Constitution of the United States various State Supreme Courts had held that any restriction of the right of free contract of adult women was unconstitutional. Therefore when the State of Oregon proceeded against a laundryman for violation of a State Law by working women longer than allowed by that Law, the laundryman promptly appealed from the State Court to the United States Supreme Court. The local Consumers' League thereupon notified the National League, with headquarters in New York City, that information concerning the effect of work upon women was necessary to win the case before the highest tribunal of the United States. Expert counsel was obtained, and Miss Josephine Goldmark, of the League, was detailed to collect the information. She employed ten readers, some of them medical students, and special privileges were granted her at Columbia University Library, the Astor Library of New York City, and the Library of Congress in Washington. The result was a sweeping verdict sustaining the State.

There are two great classes of the poor—those who for some reason or other do not work, and those who, while working, do not receive enough to support themselves and their families. To the former the Church has been a staunch friend. It is one of her glories that her enemies accuse her of fostering pauperism by too lavish charity. Her hospitals and orphanages, her homes for the fallen and aged, her refuges for the sick of soul and body are dotted over the whole land, and are administered with a devotion and self-sacrificing heroism compelling the admiration of all. As John Boyle O'Reilly said, hers is not

"Organized charity scrimped and iced
In the name of a cautious, statistical Christ."

But what are we doing for that other great class of poor, those who work but do not receive a just compensation? What are we doing in the way of preventive philanthropy, to keep these men from becoming utterly destitute? It is for the sublime struggle of the underpaid workman that our sympathies need now to be aroused. No Crusader ever fought for the Sepulcher with more heroism than many a poverty-stricken laborer to support himself and family. Day after day he takes up the hopeless task, while nearer and nearer yawns the slough of pauperism where four million human beings who were once self-respecting workmen like himself, now crawl in lethargic content.^[99] No waving pennons and blare of trumpets, but a factory whistle at 6 A.M. and a chimney puffing black smoke summon him to battle with powers stronger than Saladin in his might. What Robert Southwell wrote of himself during imprisonment might to-day be applied to millions of wage-slaves:

"I live, but such a life as ever dies,
I die, but such a death as never ends;
My death to end my dying life denies,
And life my living death no whit amends."

Yet notwithstanding the workman's almost superhuman efforts to avoid pauperism, once he reaches that abyss he loses all desire to rise from it. You cannot drive him back into that industrial war which is daily crushing better and stronger natures.

Such being the situation, is it not an inspiration to the Consumer who longs to do something for humanity to feel that he is contributing his mite to keep some workmen from becoming paupers? There are persons, I know, to whom their utter helplessness in the face of all the social evils oppressing us to-day, has been the keenest suffering. To them this doctrine of the responsibility of Consumers and the plans of fulfilling it have come as a gospel of good news. They have felt that they could now find rest from their tortures of conscience: they have felt that they could now have a purpose in life worth living for.

And what if in our sober moments we must admit, that the good we individually accomplish as regards the workman be small? What if we are tempted to look upon it as useless? Let us take courage from the fact that we are members of an organization, that everything that the group accomplishes is in some way attributable to us. One hundred men associated together can accomplish much more than those same men working separately for the same ends. This fact is evident in the case of a religious community. If the members of these communities were scattered as individuals over the earth, how paltry would be the results of all their self-sacrifice and devotion compared with what it is to-day. And so each individual Consumer, banded with others in an organization, can feel that all the work of the whole body is to some extent his. His powers of doing good are multiplied, and the mere fact of his association with others multiplies their capacities too.

But even if this were not so, the mere fact of realizing this principle and co-operating with other noble-minded persons in its fulfillment will be an immense gain to ourselves and will finally result in unexpected good to society. Simply to know that we are accomplishing some little mite in the field of preventive philanthropy will be an inspiration in our lives.

To ask ourselves, not whether a hat be exactly the latest style, not whether it be absolutely the cheapest we can get, but how it was made, what effect is our buying it going to have upon the workers and society in general, will beget an invaluable spirit of self-effacement. A social conscience will be generated and grow until it becomes a dominant note in our lives. And from us this gospel of charity and justice, this good news to men of good will, will spread until it becomes a mighty force for social amelioration.

We have passed through ages of autocratic tyranny; the individualistic democracy of the last century is waning; there is approaching an era of social effort, social morality, a recognition of social interdependence. "The quick and sensitive ear," to quote Miss Scudder, "hears the beat of a new music, to which men begin to rally."^[100] It is a concerted harmony, no mere solitary bugle call; and those who march to it are more or less consciously swayed by a new rhythm. For it is notable that the rhythms of life are coming more and more to connote harmony rather than melody, or rather to weave many melodic phrasings into one complex whole. Association—or to use the fairer word, fellowship—becomes a term of increasing modern cogency."

What matter, that to any but the superficial observer, the situation looks dark. It may be that the more we study it, the blacker it grows. As we look back upon the history of man's strivings for some better social organization, the conflict may seem hopeless. We may be tempted to reflect with William Morris, "How men fight and lose the battle, and the thing they fought for comes about in spite of their defeat, and when it comes it turns out not to be what they meant, and other men have to fight for what they meant under another name."

But it is nobler to say with Mrs. Browning:

"We will trust God. The blank interstices
Men take for ruins, He will build into
With pillared marbles rare, or knit across
With generous arches, till the fane's complete.
This world has no perdition if some loss."

FOOTNOTES:

[93] Father Cuthbert, O.S.F.C., "Catholic Ideals in Social Life," p. 211: N. Y., 1904.

[94] Bulletin of U. S. Bur. of Lab., Jan. 1, 1911, p. 869.

[95] Cf. Mrs. Florence Kelly, "Some Ethical Gains through Legislation," N. Y., Macmillan, 1905; Bulletins of U. S. Bur. Lab. giving resumé of labor legislation.

[96] The next few pages appeared substantially as here given in *The Month*, March, 1911, under the title "The Consumer's Opportunity." The author thanks the editor of this magazine for kind permission to reproduce this matter.

[97] "Historical Sketch of the Pioneer Consumers' League," p. ii, Consumers' League of New York City, 1908. For further information address Mr. V. P. Kellogg, 105 E. 22nd St, New York City.

[98] Cf. *The Survey*, Dec. 17, 1910.

[99] Cf. Hunter, "Poverty," New York, 1906.

[100] *Hibbert Journal*, Apr., 1909.

APPENDIX

1 Constans et perpetua voluntas jus suum unicuique tribuendi; voluntaria laesio et violatio juris alieni: De Lugo, De just. et jure, Disp. VIII, Sec. I, n. 1.

2 Debitum rationale ex necessaria connectione mediorum cum fine necessario resultans: Theologia moralis fundamentalis, ed. 2a, Bruges, 1890, p. 188.

3 "Quoties aequalitas non servatur ut venditor ultra supremum pretium, vel emptor emat infra infimum ... injustitia committitur." L. c., Tr. VII, n. 380.

4 In hac re cooperator est, qui simul cum alio est causa damni, sive immediata sive positiva sive negativa. Non enim in omnibus eadem est ratio cooperationis, sed hoc est omnibus commune, quod cum alio concurrant ad damnum seu injuriam damnosam.

Ballerini L. c., Tr. VII, n. 128: cf. De Lugo, L. c. XVII, II, 37.

5 Praeferendum est enim commune bonum privato. Pt. I, Tr. III, Tom. IX, Sec. IV, p. 1171.

6 Cum enim unus homo sit pars multitudinis, quilibet homo hoc ipsum quod est, et quod habet, est sicut et quaelibet pars id quod est, est totius; unde et natura aliquod detrimentum infert parti, ut salvet totum: 2a 2ae, Q.96, A.4.

7 Haec potestas est necessaria ad bonam rei publicae humanae gubernationem. Op. cit., Pt. I, Tom. V, Lib. III, Cap. 21.

8 Ex damno et periculo, quod bono publico publicaeque securitati inferretur si impune id agere liceret. Theol. Mor., Pt. I, Lib. I, Div. II, Par. 4, n. 761.

9 Tota difficultas consistit in assignanda ratione hujus veritatis: nam licet turpitudine haec statim appareat, non tamen facile est ejus fundamentum invenire: unde (quod in aliis multis quaestionibus contingit) magis certa est conclusio, quam rationes, quae variae a diversis afferuntur ad ejus probationem. De Just. et Jure, Disp. X, Sec. I, Num. 2.

10 Fatendum est esse aliquas practicas veritates humano convictui necessarias, quas homines instinctu quodam rationali percipiunt et sentiunt, quarum tamen rationem prorsus demonstrativam, cum eam iidem analytice quaerunt, difficulter inveniunt. Videtur voluisse natura sive auctor naturae hujusmodi instinctu aut sensu rationali supplere defectum rationis se exercentis: ... Inter hujusmodi veritates haec quoque forte, qua de agimus, invenitur. Theologia Moralis, Tr. VI, Sec. VI, Num. 119, Vol. II, pp. 727-728.

BIBLIOGRAPHY

- J. Kelleher, *Private Ownership*, Dublin, 1911.
- Capecelatro, Cardinal, *Christ, the Church, and Man*. St. Louis, 1909.
- Thomas Aquinas, *Summa Theologica*, *secunda secundae*.
- De Lugo, Cardinal John, *De Justitia et Jure*.
- Bouquillon, *Theologia Moralis Fundamental*, ed. 2a, Bruges, 1890.
- Liguori, Alphonsus, *Theologia moralis*.
- Noldin, H., *Theologia Moralis*, 3 vols., 8th ed., N. Y., 1911.
- Ballerini, Antonio, *Theologia Moralis*.
- Cuthbert, O. F. M. Cap., *Catholic Ideals in Social Life*, N. Y., 1904.
- Cunningham, W., *Christianity & Social Questions*: London, 1910.
- Clark, J. B., *Essentials of Economic Theory*, 1907.
- United States Bureau of Labor: *Report on the Condition of Woman & Child Wage-Earners in the United States*, 19 vols., 1910-1912.
- Charities Publication Committee, *The Pittsburgh Survey*.
- Minneapolis Vice Commission, *Report*, 1911.
- Chicago Vice Commission, *Report*, 1911.
- Seligman, E. R. A., *The Social Evil*, N. Y., 1912.
- United States Bureau of Labor, *Industrial Hygiene*, 1908.
- Kelly, Florence, *Some Ethical Gains through Legislation*, N. Y., 1905.
- Hunter, Robert, *Poverty*, N. Y., 1905.
- Le Play, F., *La Reforme Sociale*, Tours, 1878, 3 vols.
- Missiaen, Berthold, O. M. Cap., *L'Appauvrissement des Masses*, Louvain, 1911.
- Clark, J. B., *The Distribution of Wealth*, N. Y., 1889.
- Woods, Robert A., ed., *Americans in Process*, Boston, 1903.
- Bliss, Wm. D. P., ed., *New Encyclopedia of Social Reform*, N. Y., 1908.
- Clark, Sue Ainslie, & Edith Wyatt, *Making Both Ends Meet*, N. Y., 1911.

Streightoff, Frank Hatch, The Standard of Living among the Industrial People of America, Boston, 1911.

Butler, Eliz. Beardsley, Saleswomen in Mercantile Stores, N. Y., 1912.

Ryan, John A., A Living Wage, N. Y., 1906.

Devine, Edw. T., Principles of Relief, N. Y., 1904.

Bousanquet, Helen, The Standard of Life, London, 1908.

Chapin, Coit, The Standard of Living among Workingmen's Families in New York City, N. Y., 1909.

Journal of Political Economy.

Economic Journal.

Quarterly Journal of Economics.

Journal of the American Sociological Society.

Annals of the American Academy of Political & Social Science.

The Survey.

International Journal of Ethics.

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